

THE FOREST ACT, 1927
(XVI of 1927)

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[Repealed]

TEXT

¹THE FOREST ACT, 1927

(XVI of 1927)

[24 September 1927]

An
Act

to consolidate the law relating to forests, the transit of forest-produce and the duty leviable on timber and other forest-produce.

WHEREAS it is expedient to consolidate the law relating to forests, the transit of forest-produce and the duty leviable on timber and other forest-produce;

It is hereby enacted as follows:—

CHAPTER I Preliminary

1. Short title and extent.— (1) This Act may be called the ²[*] Forest Act, 1927.

(2) ³[It extends to the Punjab.]

⁴⁵[[(3) * * * * *]].

⁶[**2. Interpretation clause.**— In this Act—

⁷[(a) “brushwood” includes all woody plants, bushes, shrubs and small trees growing on wastelands, reserved forests and protected forests, with the

¹For Statement of Objects and Reasons, see Gazette of India, 1926, Pt. V. p. 165, and for Report of Select Committee, see *ibid.*, p. 242.

It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

The Act received the assent of the Governor General on September 21, 1927, published in the Gazette of India, Part IV, dated September 24, 1927, pp.43-56.

²Omitted the word “Indian” by the Adaptation of Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O.4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp.223-283, Article 3(1).

³Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. O. No. 1 of 1974), (w.e.f. 14.8.1973), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A to 1425-PP, Article 2 read with Schedule, which were earlier substituted by the Central Adaptation Of Laws Order, 1964 (P.O. No. 1 of 1964), (w.e.f. 28.5.1964), Article 2 read with the Schedule, published in the Gazette of Pakistan (Extraordinary), pp. 251c-251aap, which were earlier substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), (w.e.f. 14.10.1955), s. 3 read with the Second Schedule; published in the Gazette of Pakistan, dated June 9, 1960, pp. 725-845, which were earlier substituted by the Repealing and Amending Ordinance, 1961 (I of 1961), s. 3 read with the Second Schedule, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 71-100, which were earlier substituted by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 8, published in the Gazette of Pakistan (Extraordinary), dated May 12, 1951, pp. 331-388, which were earlier substituted by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), (w.e.f. 28.3.1949), Article 3 read with Schedule, published in the Gazette of Pakistan (Extraordinary), pp. 223-283.

⁴Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule.

⁵Deleted by the Punjab Laws (Adaptation) Order, 1974 (Pb. O. No. 1 of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-B, s. 2 read with the Schedule.

⁶Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 4.

exception of trees such as pears, apples, plums, cherries, apricots, peaches, almonds, citruses, persimmons, pistachios, guavas, litchis and vines grown thereon;

- (aa) “cattle” includes domesticated animal, horned cattle, donkey, ewes, camel, buffalo, horse, mare, gelding, pony, bull, colt, filly, mule, ass, ram, sheep, lamb, goat goat, heifer, bullock and cow;]
- (b) “Code” means Code of Criminal Procedure, 1898 (V of 1898);
- ⁸[(ba) “Court” means the Court as provided under section 51-J of the Act;
- (bb) “Department” means the Forestry, Wildlife and Fisheries Department of the Government;
- (bc) “Director General (Forests)” means the Director General (Forests) as appointed under section 51-D of the Act;
- (bd) “ecosystem” means an ecological system composed of interacting biotic and abiotic components of the environment, in which trees are the major component;
- (be) “First Information Report” means a written document formulated by an officer provided under the Act on a report or information verbal or in written from any officer, official or any person about the commission of a cognizable offence punishable under the Act;]
- (c) “forest” means a reserved forest, protected forest, unclassed forest and village forest and includes wasteland or rangeland;
- ⁹[(ca) “forest company” means a company established under the Act;]
- (d) “forest land” means a piece of land notified by the Government as the forest land to develop, protect and conserve forest and includes a rangeland and wasteland;
- (e) “forest land use” means use of a piece of land for development, conservation and preservation of a forest;
- (f) “forest offence” means an offence punishable under the Act or the rules;
- ¹⁰[* * * * *]
- (h) “forest produce” includes the following, whether found in or brought from a forest–
- ¹¹[(ha) “Forest Protection Center” means a center established or declared as such under section 51-A of the Act;]

⁷Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2.

⁸Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(b).

⁹Inserted by the Punjab Forest (Amendment) Act 2016 (XIV of 2016), published in the Punjab Gazette (Extraordinary), dated February 29, 2016, pp. 4045-4047, s. 2.

¹⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(c).

¹¹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(d).

- (i) timber, firewood, charcoal, catechu, wood-oil, resin, natural varnish, bark, lac, mahua flowers, mahaua seeds (kuth) and myrobolam;
- (ii) tree and leaves, flowers, seeds and fruits, and any other part or produce not hereinbefore mentioned, of a tree;
- (iii) plant not being a tree (including shrub, grass, creeper, reed, moss, mushroom, herb, medicinal plant and brushwood) and any other part or produce of a plant;
- (iv) wild animal and skin, tusk, horn, bone, silk, cocoon, honey, wax and any other part or produce of an animal;
- (v) peat, surface soil, rock and mineral (including limestone, laterite, mineral oil, and any other product of mines or quarries);
- (vi) natural spring; and
- (vii) any other produce which may be notified as forest produce by the Government.
- (i) “forest settlement officer” means a person appointed by the Government as the forest settlement officer;
- (j) “Government” means the Government of the Punjab;
- ¹²[(ja) “Investigation Officer” means an investigation officer appointed under section 51-G of the Act;
- (jb) “native flora” means all plant species, including trees, shrubs, herbs, grasses, ferns, algae, and fungi, whether found in nature or cultivated, in a particular region indigenous to Punjab;
- (jc) “offender” means an accused person who has violated or against whom there is reasonable belief or suspicion that he has committed violation of the provision of the Act;
- (jd) “officer” means an employee not below the rank of BS-17 and includes a forest officer as provided in sub-section (3) of section 72 of the Act;
- (je) “official” means an employee other than the officer for the purposes of the Act;
- (jf) “organized forest offence” means an offence as provided in section 79-A of the Act;
- (jg) “prescribed” means prescribed by the rules made under the Act;]
- (k) “private public partnership” means management of a forest as joint venture with a company, individual or entity;
- ¹³[(ka) “Prosecutor” means a Prosecutor as provided under section 51-L of the Act;]

¹²Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(e).

¹³Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(f).

- (l) “protected forest” means a forest notified as protected forest under the Act;
- ¹⁴[(la) “protected species” means protected species declared as such under section 80-A of the Act;]
- (m) “reserve forest” means a forest notified as reserved forest under the Act;
- (n) “river” includes any stream, canal, creek or other channel, natural or artificial;
- (o) “rules” means the rules made under the Act;
- ¹⁵[(oa) “Secretary” means the Secretary to the Government, Forestry, Wildlife and Fisheries Department;]
- (p) “trespass” means a person or persons entering a forest with tools and equipment helpful in commission of a forest offence;
- (q) “timber” includes wood (firewood, brushwood, twig, sawdust, chips), whether obtained by falling of a tree or plant or without it;
- (r) “tree” includes a woody plant, palm, bamboo, stump, brushwood and cane;
- (s) “unclassed forest” means a wasteland notified as the unclassed forest under the Act;
- (t) “village forests” means a forest notified as the village forest under the Act; ¹⁶[*]
- (u) “wasteland” includes an uncultivated or uncultivable land notified as the wasteland by the Government¹⁷[;and]
- ¹⁸[(v) “whistle-blower” means a person who, in public interest, discloses to the officer an actual or suspected violation or offence for cognizance under the Act.]

CHAPTER II Of Reserved Forests

3. Powers to reserve forests.— The ¹⁹²⁰[[Government]] may constitute any forest-land or waste-land which is the property of Government, or over which the

¹⁴Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(g).

¹⁵Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(h).

¹⁶Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(i).

¹⁷Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(i).

¹⁸Added by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.2(i).

¹⁹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁰Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

Government has proprietary rights, or to the whole or any part of the forest-produce of which the Government is entitled, a reserved forest in the manner hereinafter provided.

4. Notification by ²¹[Government].— (1) Whenever it has been decided to constitute any land a reserved forest, the ²²⁻²³[Government]] shall issue a notification in the ²⁴[Official Gazette]

- (a) declaring that it has been decided to constitute such land a reserved forest;
- (b) specifying, as nearly as possible, the situation and limits of such land; and
- (c) appointing an officer (hereinafter called “the Forest Settlement-officer”) to inquire into and determine the existence, nature and extent of any rights alleged to exist in favour of any person in or over any land comprised within such limits, or in or over any forest-produce, and to deal with the same as provided in this Chapter.

Explanation.— For the purpose of clause (b), it shall be sufficient to describe the limits of the forest by roads, rivers, bridges or other well-known or readily intelligible boundaries.

(2) The officer appointed under clause (c) of sub-section (1) shall ordinarily be a person not holding any forest-office except that of Forest Settlement-officer.

(3) Nothing in this section shall prevent the ²⁵⁻²⁶[Government]] from appointing any number of officers not exceeding three, not more than one of whom shall be a person holding any forest-office except as aforesaid, to perform the duties of a Forest Settlement-officer under this Act.

5. Bar of accrual of forest-rights.— After the issue of a notification under section 4, no right shall be acquired in or over the land comprised in such notification, except by succession or under a grant or contract in writing made or entered into by or ²⁷[on behalf of the ²⁸[Government]] or some person in whom such right was vested when the notification was issued; and no fresh clearings for

²¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²²*Ibid.*

²³Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁴Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁵Substituted for the words “Local Government” *ibid.*

²⁶Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁷Substituted for the words “on behalf of the Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²⁸Substituted for the word “Crown” by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

cultivation or for any other purpose shall be made in such land except in accordance with such rules as may be made by the ²⁹[[Government]] in this behalf.

6. Proclamation by Forest Settlement-officer.— When a notification has been issued under section 4, the Forest Settlement-officer shall publish in the local vernacular in every town and village in the neighbourhood of the land comprised therein, a proclamation—

- (a) specifying, as nearly as possible, the situation and limits of the proposed forest;
- (b) explaining the consequences which, as hereinafter provided, will ensue on the reservation of such forest; and
- (c) fixing a period of not less than three months from the date of such proclamation, and requiring every person claiming any right mentioned in section 4 or section 5 within such period either to present to the Forest Settlement-officer a written notice specifying or to appear before him and state, the nature of such right and the amount and particulars of the compensation (if any) claimed in respect thereof.

7. Inquiry by Forest Settlement-officer.— The Forest Settlement-officer shall take down in writing all statements made under section 6, and shall at some convenient place inquire into all claims duly preferred under that section, and the existence of any rights mentioned in section 4 or section 5 and not claimed under section 6 so far as the same may be ascertainable from the records of Government and the evidence of any persons likely to be acquainted with the same.

8. Powers of Forest Settlement-officer.— For the purpose of such inquiry, the Forest Settlement-officer may exercise the following powers, that is to say:—

- (a) power to enter, by himself or any officer authorised by him for the purpose, upon any land, and to survey, demarcate and make a map of the same; and
- (b) the powers of a Civil Court in the trial of suits.

9. Extinction of rights.— Rights in respect of which no claim has been preferred under section 6, and of the existence of which no knowledge has been acquired by inquiry under section 7, shall be extinguished, unless, before the notification under section 20 is published, the person claiming them satisfies the Forest Settlement-officer that he had sufficient cause for not preferring such claim within the period fixed under section 6.

10. Treatment of claims relating to practice of shifting cultivation.— (1) In the case of a claim relating to the practice of shifting cultivation, the Forest Settlement-officer shall record a statement setting forth the particulars of the claim and of any local rule or order under which the practice is allowed or regulated, and submit the

²⁹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³⁰Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

statement of the ³¹⁻³²[[Government]], together with his opinion as to whether the practice should be permitted or prohibited wholly or in part.

(2) On receipt of the statement and opinion, the ³³⁻³⁴[[Government]] may make an order permitting or prohibiting the practice wholly or in part.

(3) If such practice is permitted wholly or in part, the Forest Settlement-officer may arrange for its exercise—

- (a) by altering the limits of the land under settlement so as to exclude land of sufficient extent, of a suitable kind, and in a locality reasonably convenient for the purposes of the claimants, or
- (b) by causing certain portions of the land under settlement to be separately demarcated, and giving permission to the claimants to practice shifting cultivation therein under such conditions as he may prescribe.

³⁵[(3-a) If the admission of any claim, right or interest in a forest is found detrimental to the forest, the Government may acquire the right or interest in accordance with the provisions of the Land Acquisition Act 1894 (I of 1894) and may entrust the powers of Collector under the Land Acquisition Act 1894 (I of 1894) upon a forest settlement officer.]

(4) All arrangements made under sub-section (3) shall be subject to the previous sanction of the ³⁶⁻³⁷[[Government]].

(5) The practice of shifting cultivation shall in all cases be deemed a privilege subject to control, restriction and abolition by the ³⁸[[Government]].

³⁹[(6) The forest settlement officer may permit the practice of shifting cultivation for a period not exceeding three years, in case of undeveloped wasteland in order to develop it into a productive forest, in accordance with the provisions of this section.]

11. Power to acquire land over which right is claimed.— (1) In the case of a claim to a right in or over any land, other than a right-of-way or right of pasture, or a

³¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³²Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³⁴Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³⁵Inserted *ibid.*, s. 5 (a).

³⁶Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³⁷Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³⁸Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³⁹Inserted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 5 (b).

right to forest-produce or a water-course, the Forest Settlement-officer shall pass an order admitting or rejecting the same in whole or in part.

(2) If such claim is admitted in whole or in part, the Forest Settlement-officer shall either—

- (i) exclude such land from the limits of the proposed forest; or
 - (ii) come to an agreement with the owner thereof for the surrender of his rights; or
 - (iii) proceed to acquire such land in the manner provided by the Land Acquisition Act, 1894⁴⁰.
- (3) For the purpose of so acquiring such land—
- (a) the Forest Settlement-officer shall be deemed to be a ⁴¹[District Officer (Revenue)] proceeding under the Land Acquisition Act, 1894⁴²;
 - (b) the claimant shall be deemed to be a person interested and appearing before him in pursuance of a notice given under section 9 of that Act;
 - (c) the provisions of the preceding sections of that Act shall be deemed to have been complied with; and
 - (d) the ⁴³[District Officer (Revenue)], with the consent of the claimant, or the Court, with the consent of both parties, may award compensation in land, or partly in land and partly in money.

12. Order on claims to rights of pasture or to forest-produce.— In the case of a claim to rights of pasture or to forest-produce, the Forest Settlement-officer shall pass an order admitting or rejecting the same in whole or in part.

13. Record to be made by Forest Settlement-officer.— The Forest Settlement-officer, when passing any order under section 12, shall record, so far as may be practicable,—

- (a) the name, father's name, caste, residence and occupation of the person claiming the right; and
- (b) the designation, position and area of all fields or groups of fields (if any), and the designation and position of all buildings (if any) in respect of which the exercise of such rights is claimed.

14. Record where he admits claim.— If the Forest Settlement-officer admits in whole or in part any claim under section 12, he shall also record the extent to which the claim is so admitted, specifying the number and description of the cattle which the claimant is from time to time entitled to graze in the forest, the season during which such pasture is permitted, the quantity of timber and other forest-produce which he is from time to time authorised to take or receive, and such other

⁴⁰I of 1894.

⁴¹Substituted for the word "Collector" by the Forest (Amendment) Ordinance, 2001 (Pb. O. No. XLVI of 2001), published in the Punjab Gazette (Extraordinary), dated November 16, 2001, pp. 1811-1812, s. 2.

⁴²I of 1894.

⁴³Substituted for the word "Collector" by the Forest (Amendment) Ordinance, 2001 (Pb. O. No. XLVI of 2001), published in the Punjab Gazette (Extraordinary), dated November 16, 2001, pp. 1811-1812, s. 2.

particulars as the case may require. He shall also record whether the timber or other forest-produce obtained by the exercise of the rights claimed may be sold or bartered.

15. Exercise of rights admitted.— (1) After making such record the Forest Settlement-officer shall, to the best of his ability, and having due regard to the maintenance of the reserved forest in respect of which the claim is made, pass such orders as will ensure the continued exercise of the rights so admitted.

- (2) For this purpose the Forest Settlement-officer may—
 - (a) set out some other forest-tract of sufficient extent, and in a locality reasonably convenient, for the purposes of such claimants, and record an order conferring upon them a right of pasture or to forest-produce (as the case may be) to the extent so admitted; or
 - (b) so alter the limits of the proposed forest as to exclude forest-land of sufficient extent, and in a locality reasonably convenient, for the purposes of the claimants; or
 - (c) record an order, continuing to such claimants a right of pasture or to forest-produce, as the case may be, to the extent so admitted, at such seasons, within such portions of the proposed forest, and under such rules, as may be made in this behalf by the ⁴⁴⁻⁴⁵[[Government]].

16. Commutation of rights.— In case the Forest Settlement-officer finds it impossible, having due regard to the maintenance of the reserved forest, to make such settlement under section 15 as shall ensure the continued exercise of the said rights to the extent so admitted, he shall, subject to such rules as the ⁴⁶⁻⁴⁷[[Government]] may make in this behalf, commute such rights, by the payment to such persons of a sum of money in lieu thereof, or by the grant of land, or in such other manner as he thinks fit.

17. Appeal from order passed under section 11, section 12, section 15 or section 16.— Any person who has made a claim under this Act, or any Forest-officer or other person generally or specially empowered by the ⁴⁸⁻⁴⁹[[Government]] in this behalf, may, within three months from the date of the order passed on such claim by the Forest Settlement-officer under section 11, section 12, section 15 or section 16, present an appeal from such order to such officer of the Revenue Department, of rank

⁴⁴Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴⁵Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁴⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴⁷Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁴⁸Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴⁹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

not lower than that of a ⁵⁰[District Officer (Revenue)], as the ⁵¹⁻⁵²[Government]] may, by notification in the ⁵³[Official Gazette], appoint to hear appeals from such orders:

Provided that the ⁵⁴⁻⁵⁵[Government]] may establish a Court (hereinafter called the Forest Court) composed of three persons to be appointed by the ⁵⁶⁻⁵⁷[Government]], and, when the Forest Court has been so established, all such appeals shall be presented to it.

18. Appeal under section 17.— (1) Every appeal under section 17 shall be made by petition in writing, and may be delivered to the Forest Settlement-officer, who shall forward it without delay to the authority competent to hear the same.

(2) If the appeal be to an officer appointed under section 17, it shall be heard in the manner prescribed for the time being for the hearing of appeals in matters relating to land-revenue.

(3) If the appeal be to the Forest Court, the Court shall fix a day and a convenient place in the neighbourhood of the proposed forest for hearing the appeal, and shall give notice thereof to the parties, and shall hear such appeal accordingly.

(4) The order passed on the appeal by such officer or Court, or by the majority of the members of such Court, as the case may be, shall, subject to revision by the ⁵⁸⁻⁵⁹[Government]], be final.

19. Pleaders.— The ⁶⁰⁻⁶¹[Government]], or any person who has made a claim under this Act, may appoint any person to appear, plead and act on its or his behalf before the Forest Settlement-officer, or the appellate officer or Court, in the course of any inquiry or appeal under this Act.

⁵⁰Substituted for the word "Collector" by the Forest (Amendment) Ordinance, 2001 (Pb. O. No. XLVI of 2001), published in the Punjab Gazette (Extraordinary), dated November 16, 2001, pp. 1811-1812, s. 2.

⁵¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵²Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁵³Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵⁴Substituted for the words "Local Government" *ibid*.

⁵⁵Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁵⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵⁷Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁵⁸Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵⁹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁶⁰Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶¹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

20. Notification declaring forest reserved.— (1) When the following events have occurred, namely:-

- (a) the period fixed under section 6 for preferring claims has elapsed, and all claims, if any, made under that section or section 9 have been disposed of by the Forest Settlement-officer;
- (b) if any such claims have been made, the period limited by section 17 for appealing from the orders passed on such claims has elapsed, and all appeals (if any) presented within such period have been disposed of by the appellate officer or Court; and
- (c) all lands (if any) to be included in the proposed forest, which the Forest Settlement-officer has, under section 11, elected to acquire under the Land Acquisition Act, 1894⁶², have become vested in the Government under section 16 of that Act,

the ⁶³⁻⁶⁴[[Government]] shall publish a notification in the ⁶⁵[Official Gazette], specifying definitely, according to boundary marks erected or otherwise, the limits of the forest which is to be reserved, and declaring the same to be reserved from a date fixed by the notification.

(2) From the date so fixed such forest shall be deemed to be a reserved forest.

21. Publication of translation of such notification in neighbourhood of forest.— The Forest-officer shall, before the date fixed by such notification, cause a translation thereof into the local vernacular to be published in every town and village in the neighbourhood of the forest.

22. Power to revise arrangement made under section 15 or section 18.— The ⁶⁶⁻⁶⁷[[Government]] may, within five years from the publication of any notification under section 20, revise any arrangement made under section 15 or section 18, and may for this purpose rescind or modify any order made under section 15 or section 18, and direct that any one of the proceedings specified in section 15 be taken in lieu of any other of such proceedings, or that the rights admitted under section 12 be commuted under section 16.

23. No right acquired over reserved forest, except as here provided.— No right of any description shall be acquired in or over a reserved forest except by

⁶²1 of 1894.

⁶³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶⁴Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁶⁵Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶⁶Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶⁷Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

succession or under a grant or contract in writing made by or ⁶⁸[on behalf of the ⁶⁹[Government]] or some person in whom such right was vested when the notification under section 20 was issued.

24. Rights not to be alienated without sanction.– (1) Notwithstanding anything contained in section 23, no right continued under clause (c) of sub-section (2) of section 15 shall be alienated by way of grant, sale, lease, mortgage or otherwise, without the sanction of the ⁷⁰⁷¹[Government]]:

Provided that, when any such right is appendant to any land or house, it may be sold or otherwise alienated with such land or house.

(2) No timber or other forest-produce obtained in exercise of any such right shall be sold or bartered except to such extent as may have been admitted in the order recorded under section 14.

25. Power to stop ways and water-courses in reserved forests.– The Forest-officer may, with the previous sanction of the ⁷²⁷³[Government]] or of any officer duly authorised by it in this behalf, stop any public or private way or water-course in a reserved forest, provided that a substitute for the way or water-course so stopped, which the ⁷⁴⁷⁵[Government]] deems to be reasonably convenient, already exists, or has been provided or constructed by the Forest-officer in lieu thereof.

⁷⁶**[26. Offences relating to reserved forests.**– ⁷⁷[(1) A person shall be punished with imprisonment for a term which may extend to seven years but not less than five years and with fine which shall not be less than five hundred thousand rupees but not more than five million rupees, along with confiscation of the weapon, article, forest produce, vehicle, equipment, machinery, cart, boat, cattle or any other article or animal used in commission of offence in addition to the value of the damage caused due to offence assessed under sub-section (3) and in case of non-payment of fine, shall undergo six months imprisonment, who in a reserved forest:

- (a) kindles fire or burns fire in the manner which endangers the forest or sets on fire any plant or tree;

⁶⁸Substituted for the words “on behalf of the Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

⁶⁹Substituted for the word “Crown” by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

⁷⁰Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷¹Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁷²Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷³Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁷⁴Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷⁵Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

⁷⁶*Ibid.*, s. 6.

⁷⁷Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(a).

- (b) cuts or fells any plant or tree;
- (c) quarries stones, mines, minerals, burns lime or charcoal, or collects or remove any forest produce;
- (d) constructs any building, structure, hutment or cattle pen;
- (e) clears or breaks up any land for cultivation or any other purpose;
- (f) encroaches upon the forest land;
- (g) changes the land use for the purpose other than development, preservation or conservation of the forest or park; and
- (h) installs a saw mill, charcoal kiln or establishes timber or firewood depot or operates any mechanical aid designed to cut, fashion or convert a tree or timber or fabricates wood into articles of furniture, building materials, joinery or articles of domestic or commercial use in or within five-mile radius of the forest.

(2) A person shall be punished with imprisonment for a term, which may extend to five years but not less than three years and with fine which shall not be less than one hundred thousand rupees not more than one million rupees, along with confiscation of the weapon, article, forest produce, vehicles, equipment, machinery, cart, boat, cattle or any other article or animal used in commission of offence in addition to the damage provided under sub-section (3) and in case of non-payment of fine, shall undergo six months imprisonment, who in a reserved forest:

- (a) makes fresh clearing which is prohibited under section 5;
- (b) causes damage by negligently felling a tree, cutting or dragging any timber;
- (c) fells, girdles, lops, taps or burns a tree or strips off a bark or leaves of a tree or otherwise damages the same;
- (d) contravenes any rules relating to hunting, shooting, fishing, or setting up traps or snares;
- (e) kindles, keeps or carries any fire except during such season as the officer may notify in this behalf;
- (f) trespasses or pastures cattle, or permits cattle to trespass or leaves cattle for grazing intentionally;
- (g) removes or causes damage to the soil, water, natural vegetation (shrubs, herbs and plants), fish, wild animals and wild birds; and
- (h) damages any structures such as water channel, check dam, embankment, reservoir or pond.]

- (3) The value of the damage caused due to the offence ⁷⁸[* * *]
* * * *] amount of fine for the offence] shall be as

follows:—

⁷⁸Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(i).

- (a) if the damage is worth one thousand rupees or less, the ⁷⁹[value of damage] may extend to ⁸⁰[twenty] thousand rupees ⁸¹[but shall not be less than the ⁸²[**] damage caused to the forest produce assessed by the Department];
- (b) if the damage is worth more than one thousand rupees but less than ten thousand rupees, the ⁸³[value of damage] may extend to ⁸⁴[one hundred] thousand rupees ⁸⁵[but shall not be less than the ⁸⁶[**] damage caused to the forest produce assessed by the Department];
- (c) if the damage is worth more than ten thousand rupees but less than twenty-five thousand rupees, the ⁸⁷[value of damage] may extend to ⁸⁸[two hundred] thousand rupees ⁸⁹[but shall not be less than the ⁹⁰[**] damage caused to the forest produce assessed by the Department];
- (d) if the damage is worth more than twenty-five thousand rupees but less than one hundred thousand rupees, the ⁹¹[value of damage] may extend to ⁹²[one million] rupees ⁹³[but shall not be less than the ⁹⁴[**] damage caused to the forest produce assessed by the Department]

⁷⁹Substituted for the word "fine" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁸⁰Substituted for the word "ten" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁸¹Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁸²Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁸³Substituted for the word "fine" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: 18 December 2025, pp. 3283-3300, s.3(b)(i).

⁸⁴Substituted for the word "fifty" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(i).

⁸⁵Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁸⁶Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(i).

⁸⁷Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁸⁸Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁸⁹Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁹⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(ii).

⁹¹Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(iii).

⁹²Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(iii).

⁹³Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁹⁴Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(iii).

- (e) if the damage is worth more than one hundred thousand rupees, the fine may extend to ten times ⁹⁵[**] the damage ⁹⁶[but shall not be less than the value of damage caused to the forest produce assessed by Department].

⁹⁷[(3-a) In case an offender refuses to pay the value of damage and ⁹⁸[* * * *] the imprisonment period shall be:

- (a) ⁹⁹[one month] if the damage is worth above twenty-five thousand rupees but less than fifty thousand rupees;
- (b) ¹⁰⁰[two months] if the damage is worth above fifty thousand rupees but less than seventy-five thousand rupees;
- (c) ¹⁰¹[three months] if the damage is worth above seventy-five thousand rupees but less than one hundred thousand rupees;
- (d) ¹⁰²[six months] if the damage is worth above one hundred thousand rupees but less than one hundred fifty thousand rupees;
- (e) ¹⁰³[eight months] if the damage is worth above one hundred fifty thousand rupees but less than two hundred fifty thousand rupees;
- (f) ¹⁰⁴[ten months] if the damage is worth above two hundred fifty thousand rupees but less than five hundred thousand rupees;
- (g) ¹⁰⁵[one year] if the damage is worth above five hundred thousand rupees but less than seven hundred thousand rupees;
- (h) ¹⁰⁶[eighteen months] if the damage is worth above seven hundred thousand rupees but less than ten hundred thousand rupees; and

⁹⁵Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(b)(iv).

⁹⁶Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁹⁷Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

⁹⁸Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(i).

⁹⁹Substituted for the words "seven days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(ii).

¹⁰⁰Substituted for the words "ten days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(iii).

¹⁰¹Substituted for the words "fifteen days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(iv).

¹⁰²Substituted for the words "one month" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(v).

¹⁰³Substituted for the words "two months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(vi).

¹⁰⁴Substituted for the words "three months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(vii).

¹⁰⁵Substituted for the words "four months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(viii).

¹⁰⁶Substituted for the words "five months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(ix).

- (i) ¹⁰⁷[two years] if the damage is worth above ten hundred thousand rupees.]

(4) If a person commits any offence under this section after sunset and before sunrise or where the person has been previously convicted for a forest offence, the person shall be liable to punishment of imprisonment ¹⁰⁸[for seven years and fine provided under sub-section (2) and double of the value of the damage provided in sub-section (3)], or to both.

(5) Nothing in this section shall be deemed as an offence, if the act is done—

- (a) with the permission in writing of the forest officer, or in accordance with the rules; and
- (b) in exercise of any right under the Act, rules, grant or contract made by the Government.

(6) If fire in a reserved forest is caused willfully or by gross negligence, the Government may suspend exercise of any or all rights of pasture or to forest produce, for such period as it may determine.

(7) The Government may, after affording an opportunity of hearing and for reasons to be recorded in writing, extinguish a right or interest of a person in a reserved forest.

(8) The forest officer shall seize the forest produce in respect of which an offence is committed together with any tool, carriage wagon, cart or other vehicle for transport and anything used in the commission of the offence.]

¹⁰⁹[(9) The offence punishable under sub-sections (1), (2), (4) of this section, section 53 and section 79-A shall be cognizable, non-bailable and triable by the Court.

(10) Any provision for which no specific penalty is provided under the Act, shall be punished with imprisonment for a term which may extend to three years but not less than one year and with fine which may extend to one hundred thousand rupees but not less than twenty thousand rupees in addition to the value of the damage caused due to the offence as assessed by the Department as provided in sub-section (3).]

¹¹⁰[**26-A. Removal of encroachments, etc., from Reserved Forests.**— (1) A Court convicting an accused person of an offence under clause (h) of sub-section (1) of section 26 shall direct the accused, if he or any other person on his behalf be in possession of the land in respect of which he is convicted, to deliver possession of the same within such period not exceeding thirty days, as the Court may fix in this

¹⁰⁷Substituted for the words "six months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(c)(x).

¹⁰⁸Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(d).

¹⁰⁹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.3(e).

¹¹⁰Inserted by the Forest (West Pakistan Amendment) Act, 1964 (XVII of 1964), published in the Gazette of West Pakistan (Extraordinary), dated March 17, 1964, pp. 833-834, s. 2.

behalf, to the prescribed Forest Officer, and to remove within the said period any encroachments which the accused may have put up or erected on such land.

¹¹¹[(2) If the Court directs an accused person under sub-section (1) to deliver possession of land in a reserved forest to the prescribed forest officer or to remove the encroachment and the person fails to deliver the possession or remove the encroachment within the specified period, the Court may—

- (a) direct ejectment of the person from the land or removal of the encroachment with such force as may be necessary and in such manner as may be prescribed;
- (b) impose upon the accused person, a fine which may extend to ¹¹²[ten] thousand rupees for every day, after the period fixed by the Court under the provisions of sub-section (1) has expired and the person remains in possession of the land or fails to remove the encroachment on such land, ¹¹³[and may order for imprisonment till removal of encroachment]
- (c) direct the accused person to pay to the Government the expenditure incurred by the Government on removal of the encroachment.]

¹¹⁴**[27. Power to declare forest no longer reserved.**— (1) The Government shall not declare or notify a reserved forest or any part of the reserved forest as being no longer reserved forest.

(2) The Government shall not allow change in land use of a reserved forest, except for the purposes of right of way, building of roads and development of a forest park, but the Government shall not allow construction of concrete building or permanent structure in the reserved forest.]

¹¹⁵[(3) Notwithstanding anything contained in this section, the Government, with the approval of the Provincial Cabinet, may, by notification in the official Gazette, declare a reserved forest or any part of a reserved forest as no longer reserved forest, if the organization requiring reserved forest land:

- (a) satisfies the Government with cogent reasons in writing that there is no other option but to use the proposed reserved forest land for purposes of a national project of strategic importance;
- (b) provide a substitute plant-able land agreed to by the Government, which is:
 - (i) equal to or bigger than the reserved forest land;

¹¹¹Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 7.

¹¹²Substituted for the word "one" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.4(a).

¹¹³Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.4(b).

¹¹⁴Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 8.

¹¹⁵Inserted by the Punjab Forest (Amendment) Act 2016 (XXVI of 2016), published in the Punjab Gazette (Extraordinary), dated April 20, 2016, pp. 4661-4662, s. 2.

- (ii) in a compact form and is, as far as possible, situated close to the reserved forest land; and
- (c) provide funds for immediate forestation and maintenance of the substitute land as may be prescribed.
- (4) The Government shall, by notification, declare the substitute land provided under subsection (3) as the reserved forest.]

CHAPTER III Of village-forests

28. Formation of village-forests.– (1) The ¹¹⁶⁻¹¹⁷[Government]] may assign to any village-community the rights of Government to or over any land which has been constituted a reserved forest, and may cancel such assignment. All forests so assigned shall be called village-forests.

¹¹⁸[(2) The Government may make rules for management of a village-forest, conditions under which the village community may use the forest produce other than timber and pasture and duties of the village community for the protection and improvement of the forest.]

(3) All the provisions of this Act relating to reserved forests shall (so far as they are not inconsistent with the rules so made) apply to village-forests.

¹¹⁹[**28-A. Unclassed forests.**– (1) The Government may, by notification, declare a wasteland, not being a reserved forest or protected forest, as unclassified forest.

(2) The Government may, by notification, direct that all or any provisions of this Act relating to a reserved forest or protected forest, shall apply to an unclassified forest.

(3) The Government may make rules for management of an unclassified forest.]

CHAPTER IV Of protected forests

29. Protected forests.– (1) The ¹²⁰⁻¹²¹[Government]] may, by notification in the ¹²²[Official Gazette], declare the provisions of this Chapter applicable to any forest-

¹¹⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹¹⁷Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹¹⁸Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 9.

¹¹⁹*Ibid.*, s.10.

¹²⁰Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²¹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

land or waste-land which is not included in a reserved forest, but which is the property of Government, or over which the Government has proprietary rights, or to the whole or any part of the forest-produce of which the Government is entitled.

(2) The forest-land and waste-lands comprised in any such notification shall be called a “protected forest”.

(3) No such notification shall be made unless the nature and extent of the rights of Government and of private persons in or over the forest-land or waste-land comprised therein have been inquired into and recorded at a survey or settlement, or in such other manner as the ¹²³⁻¹²⁴[Government]] thinks sufficient. Every such record shall be presumed to be correct until the contrary is proved:

Provided that, if, in the case of any forest-land or waste-land, the ¹²⁵⁻¹²⁶[Government]] thinks that such inquiry and record are necessary, but that they will occupy such length of time as in the meantime to endanger the rights of Government, the ¹²⁷⁻¹²⁸[Government]] may, pending such inquiry and record, declare such land to be a protected forest, but so as not to abridge or affect any existing rights of individuals or communities.

30. Power to issue notification reserving trees, etc.– The ¹²⁹⁻¹³⁰[Government]] may, by notification in the ¹³¹[Official Gazette],–

- (a) declare any trees or class of trees in a protected forest to be reserved from a date fixed by the notification;
- (b) declare that any portion of such forest specified in the notification shall be closed for such term, not exceeding thirty years, as the ¹³²⁻¹³³[Government]] thinks fit, and that the rights of private persons, if any,

¹²²Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²⁴Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹²⁵Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²⁶Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹²⁷Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²⁸Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹²⁹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹³⁰Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹³¹Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹³²Substituted for the words “Local Government” *ibid*.

over such portion shall be suspended during such term, provided that the remainder of such forest be sufficient, and in a locality reasonably convenient, for the due exercise of the rights suspended in the portion so closed; or

- (c) prohibit, from a date fixed as aforesaid, the quarrying of stone, or the burning of lime or charcoal, or the collection or subjection to any manufacturing process, or removal of, any forest-produce in any such forest, and the breaking up or clearing for cultivation, for building, for herding cattle or for any other purpose, of any land in any such forest.

31. Publication of translation of such notification in neighbourhood.— The ¹³⁴[District Officer (Revenue)] shall cause a translation into the local vernacular of every notification issued under section 30 to be affixed in a conspicuous place in every town and village in the neighbourhood of the forest comprised in the notification.

¹³⁵**32. Power to make rules for protected forests.**— The Government may make rules to regulate the following matters in relation to a protected forest—

- (a) cutting, sawing, conversion and removal of trees and timber, and the collection, manufacture and removal of forest-produce;
- (b) granting of licence to an inhabitant of a town or village in the vicinity of the protected forest to use forest produce and withdrawal of the licence;
- (c) granting of licence to a person for felling or removing a tree or timber or other forest-produce for the purpose of trade and withdrawal of the licence;
- (d) payment that a licensee is required to make in respect of the licence, tree, timber or forest produce;
- (e) examination of forest produce passing out of the forest;
- (f) clearing or breaking up of land for cultivation or any other purpose;
- (g) protection from fire of the timber lying in the forest and a tree reserved under section 30;
- (h) cutting of grass and pasturing of cattle;
- (i) hunting, shooting, fishing, poisoning water and setting trap or snare;
- (j) protection and management of any portion of the forest closed under section 30;
- (k) exercise of a right under section 29;

¹³³Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹³⁴Substituted for the word “Collector” by the Forest (Amendment) Ordinance, 2001 (Pb. O. No. XLVI of 2001), published in the Punjab Gazette (Extraordinary), dated November 16, 2001, pp. 1811-1812, s. 2.

¹³⁵Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 11.

- (l) quarrying or mining of stones or minerals, burning of lime or charcoal, collection or removal of any forest produce;
- (m) soil, water, natural vegetation, fish, wild animals and wild birds;
- (n) change of land use in the forest;
- (o) protection of the forest land from encroachment;
- ¹³⁶[(oa) protection and improvement of ecosystem and devise of forest management plan;]
- (p) water channels, check dams, embankments, reservoirs and ponds;
- (q) construction of a building, structure, hutment and cattle pen;
- (r) installation of a saw mill or operation of any mechanical aid designed to cut, fashion or convert tree or timber or fabrication of wood into articles of furniture, building material, joinery or articles of domestic or commercial use in the forest or within five miles radius of the forest; and
- (s) barbed wire fence in or around the forest.]

¹³⁷**[33. Offences relating to protected forests.–** (1) A person, who in a protected forest–

- (a) fells, ¹³⁸[cuts], girdles, lops, taps or burns a tree reserved under section 30, or strips off the bark or leaves from, or otherwise damages, the tree;
- (b) contrary to any prohibition under section 30, quarries any stone, or burns any lime or charcoal, or collects, subjects to any manufacturing process, or removes any forest produce;
- (c) contrary to any prohibition under section 30, breaks up or clears for cultivation or any other purpose any land of the forest;
- (d) sets or kindles fire without taking reasonable precautions to prevent its spreading to any tree reserved under section 30, whether standing, fallen or felled, or to any closed portion of the forest;
- (e) leaves any fire burning in the vicinity of any reserved tree or closed portion of the forest;
- (f) fells any tree or drags any timber and damages any reserved tree;
- (g) permits cattle to damage any reserved trees, ¹³⁹[or leave cattle for grazing or graze] and
- (h) infringes any rule made under section 32;

¹³⁶Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.5.

¹³⁷Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 12.

¹³⁸Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(i).

¹³⁹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(ii).

shall be punished in accordance with the provisions of this section.

¹⁴⁰[(2) Any offence provided in sub-section (1) except its clauses (f) and (g), shall be punished with imprisonment for a term which may extend to five years but not less than three years and with fine which shall not be less than fifty thousand rupees and not more than one million rupees, along with confiscation of the weapon, article, forest produce, vehicle, equipment, machinery, cattle or any other article or animal used in commission of offence in addition to the value of the damage caused due to offence as provided in sub-section (3).]

- (3) The value of the damage caused due to the offence ¹⁴¹[* * * *] for the offence shall be as follows:—
- (a) if the damage is worth one thousand rupees or less, the ¹⁴²[value of damage] may extend to ¹⁴³[twenty] thousand rupees ¹⁴⁴[but shall not be less than the value of damage caused to the forest produce assessed by the Department];
- (b) if the damage is worth more than one thousand rupees but less than ten thousand rupees, the ¹⁴⁵[value of damage] may extend to ¹⁴⁶[one hundred] thousand rupees ¹⁴⁷[but shall not be less than the ¹⁴⁸[**] damage caused to the forest produce assessed by the Department];
- (c) if the damage is worth more than ten thousand rupees but less than twenty-five thousand rupees, the ¹⁴⁹[value of damage] may extend to ¹⁵⁰[two hundred] thousand rupees ¹⁵¹[but shall not be less than the ¹⁵²[**] damage caused to the forest produce assessed by the Department];

¹⁴⁰Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(b).

¹⁴¹Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(i).

¹⁴²Substituted for the word "fine" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(ii).

¹⁴³Substituted for the word "ten" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(ii).

¹⁴⁴Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁴⁵Substituted for the word "fine" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(iii).

¹⁴⁶Substituted for the word "fifty" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(iii).

¹⁴⁷Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁴⁸Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(ii).

¹⁴⁹Substituted for the word "fine" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(iv).

¹⁵⁰Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(iv).

¹⁵¹Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁵²Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(iv).

- (d) if the damage is worth more than twenty-five thousand rupees but less than one hundred thousand rupees, the ¹⁵³[value of damage] may extend to ¹⁵⁴[one million] rupees ¹⁵⁵[but shall not be less than the ¹⁵⁶**] damage caused to the forest produce assessed by the Department]; and
- (e) if the damage is worth more than one hundred thousand rupees, the fine may extend to ten times ¹⁵⁷** the damage ¹⁵⁸[but shall not be less than the value of damage caused to the forest produce assessed by Department].

¹⁵⁹[(3-a) In case an offender refuses to pay the value of damage and ¹⁶⁰[*****], the imprisonment period shall be:

- (a) ¹⁶¹[one month] if the damage is worth above twenty-five thousand rupees but less than fifty thousand rupees;
- (b) ¹⁶²[two months] if the damage is worth above fifty thousand rupees but less than seventy-five thousand rupees;
- (c) ¹⁶³[three months] if the damage is worth above seventy-five thousand rupees but less than one hundred thousand rupees;
- (d) ¹⁶⁴[six months] if the damage is worth above one hundred thousand rupees but less than one hundred fifty thousand rupees;
- (e) ¹⁶⁵[eight months] if the damage is worth above one hundred fifty thousand rupees but less than two hundred fifty thousand rupees;

¹⁵³Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(v).

¹⁵⁴Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(v).

¹⁵⁵Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁵⁶Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(v).

¹⁵⁷Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(c)(vi).

¹⁵⁸Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁵⁹Inserted by the Forest (Amendment) Act 2022 (XXVII of 2022), published in the Punjab Gazette (Extraordinary), dated: 31 October 2022, pp. 1689-1690, s.3.

¹⁶⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(i).

¹⁶¹Substituted for the words "seven days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(ii).

¹⁶²Substituted for the words "ten days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(iii).

¹⁶³Substituted for the words "fifteen days" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(iv).

¹⁶⁴Substituted for the words "one month" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(v).

¹⁶⁵Substituted for the words "two months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(vi).

- (f) ¹⁶⁶[ten months] if the damage is worth above two hundred fifty thousand rupees but less than five hundred thousand rupees;
- (g) ¹⁶⁷[one year] if the damage is worth above five hundred thousand rupees but less than seven hundred thousand rupees;
- (h) ¹⁶⁸[eighteen months] if the damage is worth above seven hundred thousand rupees but less than ten hundred thousand rupees; and
- (i) ¹⁶⁹[two years] if the damage is worth above ten hundred thousand rupees.]

(4) If a person commits any offence under this section after sunset and before sunrise or where the person has been previously convicted for a forest offence, the person shall be liable to punishment of imprisonment ¹⁷⁰[for seven years and fine provided under sub-section (2) and double of the value of the damage provided in sub-section (3)] or to both.

(5) Nothing in this section shall be deemed as an offence, if the act is done—

- (a) with the permission in writing of the forest officer, or in accordance with the rules; and
- (b) in exercise of any right under the Act, rules, grant or contract made by the Government.

(6) If fire in a protected forest is caused willfully or by gross negligence, the Government may suspend exercise of any or all rights of pasture or to forest produce, for such period as it may determine.]

¹⁷¹[(7) The offence punishable under sub-sections (2) and (4) shall be cognizable, non-bailable and triable by the Court.]

¹⁷²**[33-A. Power of Court to evict trespassers.—** (1) A Court convicting an accused person of an offence under clause (c) of sub-section (1) of section 33, shall direct the accused, if he or any other person on his behalf be in possession of the land in respect of which he is convicted to deliver possession of the same within such period not exceeding thirty days as the Court may fix in this behalf, to the prescribed Forest Officer, and to remove within the said period any encroachment which the accused may have put up or erected on such land.

¹⁶⁶Substituted for the words "three months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(vii).

¹⁶⁷Substituted for the words "four months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(viii).

¹⁶⁸Substituted for the words "five months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(ix).

¹⁶⁹Substituted for the words "six months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(d)(x).

¹⁷⁰Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(e).

¹⁷¹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.6(f).

¹⁷²Inserted by the Forest (West Pakistan Amendment) Act, 1964 (XVII of 1964), published in the Gazette of West Pakistan (Extraordinary), dated March 17, 1964, pp. 833-834, s. 3.

¹⁷³[(2) If a person fails to deliver possession of land to the forest officer or to remove the encroachment in contravention of the order of the Court under sub-section (1)–

- (a) the Court may order ejectment of the person from the land or removal of the encroachment with such force as may be necessary and in the manner as may be prescribed;
- (b) the person shall be liable to fine which may extend to ¹⁷⁴[ten] thousand rupees for every day during which the person remains in possession of the land or fails to remove the encroachment after the expiry of the period fixed by the Court under sub-section (1),¹⁷⁵[and may order for imprisonment till removal of encroachment]; and
- (c) the Government may recover from the person the expenditures incurred on removal of the encroachment as arrears of land revenue.]]

34. Nothing in this Chapter to prohibit acts done in certain cases.– Nothing in this Chapter shall be deemed to prohibit any act done with the permission in writing of the Forest-officer, or in accordance with rules made under section 32, or, except as regards any portion of a forest closed under section 30, or as regards any rights the exercise of which has been suspended under section 33, in the exercise of any right recorded under section 29.

¹⁷⁶**[34-A. Power to declare forest no longer protected.**– (1) The Government shall not declare or notify a protected forest or any part of the protected forest as being no longer protected forest.

(2) The Government shall not allow change in land use of a protected forest, except for the purposes of right of way, building of roads and development of a forest park, but the Government shall not allow construction of concrete building or permanent structure in the protected forest.]

¹⁷⁷[(3) Notwithstanding anything contained in this section, the Government, with the approval of the Provincial Cabinet, may, by notification in the official Gazette, declare a protected forest or any part of a protected forest as no longer protected forest, if the organization requiring reserved forest land:

- (a) satisfies the Government with cogent reasons in writing that there is no other option but to use the proposed protected forest land for purposes of a national project of strategic importance;
- (b) provide a substitute plant-able land agreed to by the Government, which is:

¹⁷³Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 13.

¹⁷⁴Substituted for the word "one" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.7(a).

¹⁷⁵Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.7(b).

¹⁷⁶*Ibid.*, s. 14.

¹⁷⁷Inserted by the Punjab Forest (Amendment) Act 2016 (XXVI of 2016), published in the Punjab Gazette (Extraordinary), dated April 20, 2016, pp. 4661-4662, s. 3.

- (i) equal to or bigger than the protected forest land;
- (ii) in a compact form and is, as far as possible, situated close to the protected forest land; and
- (c) provide funds for immediate forestation and maintenance of the substitute land as may be prescribed.
- (4) The Government shall, by notification, declare the substitute land provided under subsection (3) as the protected forest.]

CHAPTER V

Of the control over forests and lands not being the property of Government

35. Protection of forests for special purposes.– (1) The ¹⁷⁸[¹⁷⁹Government]] may, by notification in the ¹⁸⁰[Official Gazette], regulate or prohibit in any forest or waste-land–

- (a) the breaking up or clearing of land for cultivation;
- (b) the pasturing of cattle; or
- (c) the firing or clearing of the vegetation;

when such regulation or prohibition appears necessary for any of the following purposes:–

- (i) for protection against storms, winds, rolling stones, floods and avalanches;
- (ii) for the preservation of the soil on the ridges and slopes and in the valleys of hilly tracts, the prevention of land-slips or of the formation of ravines and torrents, or the protection of land against erosion, or the deposit thereon of sand, stones or gravel;
- (iii) for the maintenance of a water-supply in springs, rivers and tanks;
- (iv) for the protection of roads, bridges, railways and other lines of communication;
- (v) for the preservation of the public health.

(2) The ¹⁸¹[¹⁸²Government]] may, for any such purpose, construct at its own expense, in or upon any forest or waste-land, such work as it thinks fit.

¹⁷⁸Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁷⁹Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁸⁰Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁸¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁸²Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

(3) No notification shall be made under sub-section (1) nor shall any work be begun under sub-section (2), until after the issue of a notice to the owner of such forest or land calling on him to show cause, within a reasonable period to be specified in such notice, why such notification should not be made or work constructed, as the case may be, and until his objections, if any, and any evidence he may produce in support of the same, have been heard by an officer duly appointed in that behalf and have been considered by the ¹⁸³⁻¹⁸⁴ [Government]].

36. Power to assume management of forests.— (1) In case of neglect of, or wilful disobedience to, any regulation or prohibition under section 35, or if the purposes of any work to be constructed under that section so require, the ¹⁸⁵⁻¹⁸⁶ [Government]] may, after notice in writing to the owner of such forest or land and after considering his objections, if any, place the same under the control of a Forest-officer, and may declare that all or any of the provisions of this Act relating to reserved forests shall apply to such forest or land.

(2) The net profits, if any, arising from the management of such forest or land shall be paid to the said owner.

37. Expropriation of forests in certain cases.— (1) In any case under this Chapter in which the ¹⁸⁷⁻¹⁸⁸ [Government]] considers that, in lieu of placing the forest or land under the control of a Forest-officer, the same should be acquired for public purposes, the ¹⁸⁹⁻¹⁹⁰ [Government]] may proceed to acquire it in the manner provided by the Land Acquisition Act, 1894¹⁹¹.

(2) The owner of any forest or land comprised in any notification under section 35 may, at any time not less than three or more than twelve years from the date thereof, require that such forest or land shall be acquired for public purposes, and the ¹⁹²⁻¹⁹³ [Government]] shall acquire such forest or land accordingly.

¹⁸³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁸⁴Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁸⁵Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁸⁶Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁸⁷Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁸⁸Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁸⁹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁹⁰Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁹¹I of 1894.

¹⁹²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

38. Protection of forests at request of owners.— (1) The owner of any land or, if there be more than one owner thereof, the owners of shares therein amounting in the aggregate to at least two-thirds thereof may, with a view to the formation or conservation of forests thereon, represent in writing to the ¹⁹⁴[District Officer (Revenue)] their desire—

(a) that such land be managed on their behalf by the Forest-officer as a reserved or a protected forest on such terms as may be mutually agreed upon; or

(b) that all or any of the provisions of this Act be applied to such land.

(2) In either case, the ¹⁹⁵⁻¹⁹⁶[Government]] may, by notification in the ¹⁹⁷[Official Gazette], apply to such land such provisions of this Act as it thinks suitable to the circumstances thereof and as may be desired by the applicants.

CHAPTER VI

Of the duty on timber and other forest-produce

39. Power to impose duty on timber and other forest-produce.— (1) The ¹⁹⁸⁻¹⁹⁹⁻²⁰⁰[Government]] may levy a duty in such manner, at such places and at such rates as it may declare by notification in the ²⁰¹[Official Gazette] on all timber or other forest-produce—

(a) which is produced in ²⁰²⁻²⁰³[Pakistan]], and in respect of which ²⁰⁴[the ²⁰⁵Government]] has any right;

¹⁹³Substituted for the words “Provincial Government” by The Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁹⁴Substituted for the word “Collector” by the Forest (Amendment) Ordinance, 2001 (Pb. O. No. XLVI of 2001), published in the Punjab Gazette (Extraordinary), dated November 16, 2001, pp. 1811-1812, s. 2.

¹⁹⁵Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁹⁶Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

¹⁹⁷Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁹⁸Substituted for the words “Local Government” *ibid.*, Article 3 read with Schedule I.

¹⁹⁹Substituted for the words “Central Government” by the Forest Laws Amendment Ordinance, 1962 (X of 1962), published in the Gazette of Pakistan (Extraordinary), dated February 24, 1962, pp. 265g-265h, s. 2.

²⁰⁰Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁰¹Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁰²Substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, Articles 3(2) and 4.

²⁰³Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule.

²⁰⁴Substituted for the words “the Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²⁰⁵Substituted for the word “Crown” by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

(b) which is brought from any place outside ²⁰⁶⁻²⁰⁷ [[Pakistan]] ²⁰⁸ [or is transported from or to any place within Pakistan]:

²⁰⁹ [* * * * *]

(2) In every case in which such duty is directed to be levied *ad valorem*, the ²¹⁰⁻²¹¹⁻²¹² [[Government]] may fix by like notification the value on which such duty shall be assessed.

²¹³ [(3) * * * * *]

²¹⁴⁻²¹⁵ [(4) * * * * *]]

40. Limit not to apply to purchase-money or royalty.— Noting in this Chapter shall be deemed to limit the amount, if any, chargeable as purchase-money or royalty on any timber or other forest-produce, although the same is levied on such timber or produce while in transit, in the same manner as duty is levied.

CHAPTER VII

Of the control of timber and other forest-produce in transit

41. Power to make rules to regulate, transit of forest-produce.— (1) The control of all rivers and their banks as regards the floating of timber, as well as the control of all timber and other forest-produce in transit by land or water, is vested in the ²¹⁶⁻²¹⁷ [[Government]], and it may make rules to regulate the transit of all timber and other forest-produce.

²⁰⁶Substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, Articles 3(2) and 4.

²⁰⁷Substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule.

²⁰⁸Added by the Forest Laws Amendment Ordinance, 1962 (X of 1962), published in the Gazette of Pakistan (Extraordinary), dated February 24, 1962, pp. 265g-265h, s. 2.

²⁰⁹Omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²¹⁰Substituted for the words "Local Government" *ibid*.

²¹¹Substituted for the words "Central Government" by the Forest Laws Amendment Ordinance, 1962 (X of 1962), published in the Gazette of Pakistan (Extraordinary), dated February 24, 1962, pp. 265g-265h, s. 2.

²¹²Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²¹³Omitted by the Forest Laws Amendment Ordinance, 1962 (X of 1962), published in the Gazette of Pakistan (Extraordinary), dated February 24, 1962, pp. 265g-265h, s. 2.

²¹⁴Inserted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²¹⁵Omitted by the Forest Laws Amendment Ordinance, 1962 (X of 1962), published in the Gazette of Pakistan (Extraordinary), dated February 24, 1962, pp. 265g-265h, s. 2.

²¹⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²¹⁷Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

- (a) prescribe the routes by which alone timber or other forest-produce may be imported, exported or moved into, from or within ²¹⁸[the Province];
- (b) prohibit the import or export or moving of such timber or other produce without a pass from an officer duly authorised to issue the same, or otherwise than in accordance with the conditions of such pass;
- (c) provide for the issue, production and return of such passes and for the payment of fees therefor;
- (d) provide for the stoppage, reporting, examination and marking of timber or other forest-produce in transit, in respect of which there is reason to believe that any money is payable to ²¹⁹[the ²²⁰[Government]] on account of the price thereof, or on account of any duty, fee, royalty or charge due thereon, or, to which it is desirable for the purposes of this Act to affix a mark;
- (e) provide for the establishment and regulation of depots to which such timber or other produce shall be taken by those in charge of it for examination, or for the payment of such money, or in order that such marks may be affixed to it; and the conditions under which such timber or other produce shall be brought to, stored at and removed from such depots;
- (f) prohibit the closing up or obstructing of the channel or banks of any river used for the transit of timber or other forest-produce, and the throwing of grass, brushwood, branches or leaves into any such river or any act which may cause such river to be closed or obstructed;
- (g) provide for the prevention or removal of any obstruction of the channel or banks of any such river, and for recovering the cost of such prevention or removal from the person whose acts or negligence necessitated the same;
- ²²¹[(ga) protection and improvement of ecosystem and devise forest management plan;]
- ²²²[(h) prohibit absolutely or subject to conditions, within stipulated local limits, the establishment of sawpit, sawmill, charcoal kiln, timber or fire wood depot within five miles radius of the forest, converting, cutting, burning, concealing or making of timber, altering or effacing of any mark on the same or possession or carrying of marking hammer; and]

²¹⁸Substituted for the words "British India" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²¹⁹Substituted for the word "Government" *ibid*.

²²⁰Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²²¹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.8.

²²²Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 15.

- (i) regulate the use of property marks for timber, and the registration of such marks; prescribe the time for which such registration shall hold good; limit the number of such marks that may be registered by any one person, and provide for the levy of fees for such registration.

(3) The ²²³⁻²²⁴[Government]] may direct that any rule made under this section shall not apply to any specified class of timber or other forest-produce or to any specified local area.

²²⁵**[41A. Powers of** ²²⁶⁻²²⁷[Government] **as to movements of timber across Customs frontiers.**— Notwithstanding anything in section 41, the ²²⁸⁻²²⁹[Government]] may make rules to prescribe the route by which alone timber or other forest produce may be imported, exported or moved into or from ²³⁰⁻²³¹[Pakistan]] across any customs frontier as defined by the ²³²⁻²³³[Government]], and any rules made under section 41 shall have effect subject to the rules made under this section.]

42. Penalty for breach of rules made under section 41.— ²³⁴[(1) If a person contravenes any rule, the Government may prescribe that the person shall be liable to imprisonment which ²³⁵[which may extend to one year and fine which may extend to one million rupees but not less than one hundred thousand rupees].

(2) Such rules may provide that penalties which are double of those mentioned in sub-section (1) may be inflicted in cases where the offence is committed after sunset and before sunrise, or after preparation for resistance to

²²³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²²⁴Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²²⁵Inserted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²²⁶Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (Pb. O. No. 1 of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-B, s. 2 read with the Schedule.

²²⁷Substituted for the words “Federal Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 2.

²²⁸Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (Pb. O. No. 1 of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-B, s. 2 read with the Schedule.

²²⁹Substituted for the words “Federal Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 2.

²³⁰Substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, Articles 3(2) and 4.

²³¹Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule.

²³²Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (Pb. O. No. 1 of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-B, s. 2 read with the Schedule.

²³³Substituted for the words “Federal Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 2.

²³⁴Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 16.

²³⁵Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.9. (in the Gazette it is mention in in sub-section 1).

lawful authority, or where the offender has been previously convicted of a like offence.

43. Government and Forest-officers not liable for damage to forest-produce at depot.— The ²³⁶⁻²³⁷[[Government]] shall not be responsible for any loss or damage which may occur in respect of any timber or other forest-produce while at a depot established under a rule made under section 41, or while detained elsewhere, for the purposes of this Act; and no Forest-officer shall be responsible for any such loss or damage, unless he causes such loss or damage negligently, maliciously or fraudulently.

44. All persons bound to aid in case of accident at depot.— In case of any accident or emergency involving danger to any property at any such depot, every person employed at such depot, whether by the ²³⁸⁻²³⁹[[Government]] or by any private person, shall render assistance to any Forest-officer or Police-officer demanding his aid in averting such danger or securing such property from damage or loss.

CHAPTER VIII

Of the collection of drift and stranded timber

45. Certain kinds of timber to be deemed property of Government until title thereto proved, and may be collected accordingly.— (1) All timber found adrift, beached, stranded or sunk;

all wood or timber bearing marks which have not been registered in accordance with the rules made under section 41, or on which the marks have been obliterated, altered or defaced by fire or otherwise; and

in such areas as the ²⁴⁰⁻²⁴¹[[Government]] directs, all unmarked wood and timber; shall be deemed to be the property of Government, unless and until any person establishes his right and title thereto, as provided in this Chapter.

(2) Such timber may be collected by any Forest-officer or other person entitled to collect the same by virtue of any rule made under section 51, and may be brought to any depot which the Forest-officer may notify as a depot for the reception of drift timber.

(3) The ²⁴²⁻²⁴³[[Government]] may, by notification in the ²⁴⁴[Official Gazette], exempt any class of timber from the provisions of this section.

²³⁶Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²³⁷Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.3(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²³⁸Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²³⁹Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²⁴⁰Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁴¹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

46. Notice to claimants of drift-timber.— Public notice shall from time to time be given by the Forest-officer of timber collected under section 45. Such notice shall contain a description of the timber, and shall require any person claiming the same to present to such officer, within a period not less than two months from the date of such notice, a written statement of such claim.

47. Procedure on claim preferred to such timber.— (1) When any such statement is presented as aforesaid, the Forest-officer may, after making such inquiry as he thinks fit, either reject the claim after recording his reasons for so doing, or deliver the timber to the claimant.

(2) If such timber is claimed by more than one person, the Forest-officer may either deliver the same to any of such persons whom he deems entitled thereto, or may refer the claimants to the Civil Courts, or retain the timber pending the receipt of an order from any such Court for its disposal.

(3) Any person whose claim has been rejected under this section may, within three months from the date of such rejection, institute a suit to recover possession of the timber claimed by him; but no person shall recover any compensation or costs against the ²⁴⁵⁻²⁴⁶ [Government]], or against any Forest-officer, on account of such rejection, or the detention or removal of any timber, or the delivery thereof to any other person under this section.

(4) No such timber shall be subject to process of any Civil, Criminal or Revenue Court until it has been delivered, or a suit has been brought, as provided in this section.

48. Disposal of unclaimed timber.— If no such statement is presented as aforesaid, or if the claimant omits to prefer his claim in the manner and within the period fixed by the notice issued under section 46, or on such claim having been so preferred by him and having been rejected, omits to institute a suit to recover possession of such timber within the further period fixed by section 47, the ownership of such timber shall vest in the Government, or, when such timber has been delivered to another person under section 47, in such other person free from all encumbrances not created by him.

49. ²⁴⁷⁻²⁴⁸ [Government]] and its officers not liable for damage to such timber.— The ²⁴⁹⁻²⁵⁰ [Government]] shall not be responsible for any loss or damage which may

²⁴²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁴³Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁴⁴Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁴⁵Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²⁴⁶Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²⁴⁷Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

occur in respect of any timber collected under section 45, and no Forest-officer shall be responsible for any such loss or damage, unless he causes such loss or damage negligently, maliciously or fraudulently.

50. Payments to be made by claimant before timber is delivered to him.— No person shall be entitled to recover possession of any timber collected or delivered as aforesaid until he has paid to the Forest-officer or other person entitled to receive it such sum on account thereof as may be due under any rule made under section 51.

51. Power to make rules and prescribe penalties.— (1) The ²⁵¹²⁵²[Government]] may make rules to regulate the following matters, namely:—

- (a) the salving, collection and disposal of all timber mentioned in section 45;
- ²⁵³[(b) the use and registration of boats and other vehicles used in salving and collecting timber;]
- (c) the amounts to be paid for salving, collecting, moving, storing or disposing of such timber; and
- (d) the use and registration of hammers and other instruments to be used for marking such timber.

²⁵⁴[(2) If a person contravenes any rule made under this section, the Government may prescribe that the person shall be liable to imprisonment which may extend to ²⁵⁵[two years] or fine which may extend to one million rupees or to both.]

²⁵⁶[CHAPTER VIII-A

51-A. The Forest Protection Centers.— (1) The Government shall, in prescribed manner, establish or declare one or more places or premises, generally or specially, to be a Forest Protection Center for the purposes of the Act to exercise such powers and perform such functions in such area as may be provided in the notification.

- (2) Each Forest Protection Center shall consist of:
 - (a) Assistant Conservator of Forests or Forest Protection Officer;

²⁴⁸Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²⁴⁹Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²⁵⁰Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

²⁵¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁵²Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s.3.

²⁵³Substituted *ibid.*, s. 17(a).

²⁵⁴*Ibid.*, s. 17(b).

²⁵⁵Substituted for the words "six months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.10.

²⁵⁶Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.11.

- (b) Inspector Forests;
- (c) Forest Ranger; and
- (d) any other official.

(3) The supervision of a Forest Protection Center shall vest with an officer not below the rank of Deputy Conservator of Forests as entrusted by the Secretary.

(4) Assistant Conservator of Forests or Forest Protection Officer as notified by Director General (Forests) after approval of Secretary shall be incharge of the Forest Protection Center and, in his absence, Inspector Forests may be notified in the same manner as incharge of Forest Protection Center.

(5) The officers and officials shall wear such uniform, carry such weapon and ammunition and keep such identification cards or tags and such badge in such manner as may be prescribed.

(6) Each Forest Protection Center shall be provided marked vehicles and motorbikes as may be deemed necessary.

(7) The Director General (Forests) may direct to establish such number of forest check posts in the area of a Forest Protection Center at any place as deemed appropriate to prevent the offence and to protect the forest under the Act.

(8) If any person wears without authorization, the uniform, keep identification cards, tag or badges having the appearance or bearing any of the distinctive marks of officer or official uniform, he shall, be punished with imprisonment for a term which may extend to three years, or with fine up to one hundred thousand rupees, but not less than twenty thousand rupees or with both and such offence shall be deemed as non-bailable and cognizable.

(9) The Government may make rules for providing the manners for the supervision and administration of Forest Protection Center.

51-B. Powers and functions of incharge of Forest Protection Centers.— (1) An incharge of the Forest Protection Center shall perform such functions and exercise such powers and, in such manner, as may be prescribed.

(2) In addition to the powers and functions as may be prescribed under sub-section (1), the incharge shall:

- (a) enforce and execute decisions of the Government within its territorial jurisdiction;
- (b) enforce the provisions of the Act;
- (c) conduct inspections and inquiries;
- (d) register First Information Report and conduct investigations and submit monthly report to the Director General (Forests) in prescribed manner;
- (e) arrest the offenders and submit reports to the Court or other forum or authority with the approval of the concerned Deputy Conservator of Forests;
- (f) issue orders under the directions of the Government or the Secretary or the Director General (Forests) for the purposes of the Act;

- (g) use reasonable force in terms of fire control, in case of retaliation, resistance or obstruction in performing the functions under the Act;
- (h) enter, inspect, search and seize any moveable property, forest produce together with all tools, boats, vehicles or cattle used in committing any such offence prohibited under the Act;
- (i) enter, inspect, search and seal any immovable property, building or place, subject to approval of next higher authority where he has reason to believe that an offence under the Act has been committed or sufficient evidence is available for the commission of an offence;
- (j) stop, inspect, search, investigate, seize and confiscate any vehicle, boat, cart, cattle, equipment, machinery, cycle, motorcycle, loading or transporting mode, goods, articles under the offence so committed; and
- (k) exercise such other powers and perform such other functions as may be delegated by the Director General (Forests) or Secretary.

51-C. Record keeping at Forest Protection Center.- The Forest Protection Center shall be responsible to maintain the record, in such manner as may be prescribed.

51-D. Director General (Forests).- (1) The Director General (Forests) shall be appointed by the Chief Minister in such manner and on such terms and conditions as may be prescribed.

(2) The Director General (Forests), under the superintendence and control of the Secretary, shall be responsible for accomplishing the objectives of the Act and for efficient implementation of the provisions of the Act.

(3) The Director General (Forests) shall exercise all such powers as are provided in the Act or as may be assigned to him by the Secretary or as may be prescribed.

(4) The Director General (Forests) shall be responsible for the following and may exercise all powers conferred upon any officer under the Act:

- (a) supervision of the officers and officials; and
- (b) supervision and administration of offices and Forest Protection Centers.

51-E. Appointment of officers and officials.- There shall be officers and officials to be appointed in the Department on such terms and conditions and in such manners as may be prescribed.

51-F. Powers and functions of officers.- (1) Subject to the provisions of the Act, an officer within his assigned jurisdiction, in a cognizable offence, without orders from Court, may arrest any person against whom a reasonable suspicion exists or credible information is available of his having been involved in an offence and for this purpose shall exercise all powers of a police officer provided in the Code.

(2) Any officer may perform such other functions as may be assigned by the Secretary or Director General (Forests).

51-G. Investigation officer.- (1) The Secretary himself or on the recommendations of Director General (Forests) shall, by notification, appoint as many Investigation Officers or team of Investigation Officers from the officers or officials not below BS-11 for each Forest Protection Center as he may deem appropriate.

to: (2) The Investigation Officer shall have the following powers and functions

- (a) enter, inspect, search and seize any moveable property where he has reason to believe that an offence under the Act has occurred or is apprehension of so happening;
- (b) enter, inspect, search and seal any immovable property, building or place, subject to permission of his one step higher officer where he has reason to believe that an offence under the Act has occurred or its apprehension of so happening;
- (c) stop, inspect, search, investigate, seize and confiscate any moveable property, vehicle, boat, cart, cattle, equipment, machinery, cycle, motorcycle, loading or transporting mode, goods, articles for the purposes of the Act;
- (d) issue notices or summons to the offender or concerned persons under the Act;
- (e) seize any item, goods, article or moveable property that is used in or relevant to prove the commission of offence, provided that every such item shall be listed in the register of seized items in the prescribed manner;
- (f) use reasonable force, in case of retaliation, resistance or obstruction in performing the functions under the Act;
- (g) collect evidence through electronic means to inquire or investigate, such as CCTV camera recording; video recording; audio recording; photographs; electronic data; caller data records; mobile device tracking, digital forensics, email and social media;
- (h) get the First Information Report registered at the Forest Protection Center; and
- (i) have also all such powers as provided in the Code for the purposes of investigation save as provided in the Act.

(3) No proceeding of an officer or official in any such case shall at any stage be called in question on the ground that the case was one which such officer or official was not empowered under the Act to investigate, and such other powers and functions as may be prescribed.

51-H. Transfer of investigation.— (1) Any offender may, prior to submission of report to the Court, file an application to transfer the investigation of a forest offence registered against him in the office of the concerned Deputy Conservator of Forests from one Investigation Officer to another, providing the reasons and justification for such request in a manner as may be prescribed.

(2) Within seven working days of the filing of an application by the offender, the concerned Deputy Conservator of Forests may, after intimation to the Director General (Forests) and for reasons to be recorded in writing:

- (a) reject the application if it lacks a valid reason or is without merit; or

- (b) accept the application and transfer the investigation of a case from the Investigation Officer to any other Investigation Officer of a rank equal to or higher than the rank of the previous Investigation Officer.
- (3) An appeal, within seven days of passing of an order under sub-section (2), may be filed before the office of Director General (Forests) who may:
 - (a) accept the appeal and transfer the investigation to any other investigation officer or a team of investigation officers of a rank equal to or higher than the rank of the previous investigation officer; or
 - (b) reject the appeal.

51-I. Procedure to be followed after arrest.- (1) The arrest of a person shall be brought into the knowledge of the incharge of Forest Protection Center and such arrested person shall, without unnecessary delay but not later than twenty four hours from his arrest, be produced before the Court or in absence of Special Court before the area Magistrate through the Prosecutor who shall request for physical or judicial remand, as the case may be.

(2) The incharge of a Forest Protection Center shall submit a report about the registration of case to the Deputy Conservator of Forests concerned in such manner as may be prescribed.

51-J. Cognizance and trial of offences.- (1) A Special Court, duly notified by the Government and until so notified, the Magistrate having powers under section 30 of the Code, shall take cognizance and try offence in the manner as provided in the Code and award the punishment under the Act.

(2) An officer or official under the Act shall be a competent witness for the purposes of the Act before the Court.

51-K. Appeal.- (1) Any person or the officer, aggrieved by an order of acquittal or sentence passed by the Court under the Act, may file an appeal, within thirty days of communication of such order, as provided in Chapter XXXI of the Code.

51-L. Prosecutor.- (1) The prosecution of the cases under the Act shall be conducted by the Prosecutors of the Punjab Criminal Prosecution Service appointed under the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act 2006 (III of 2006) or Prosecutors as may be appointed under the Act, in such manners and on such terms and conditions as may be prescribed.

(2) The Prosecutors appointed under the Act shall conduct prosecution in such manner as may be prescribed.

51-M. Incentive and compensation.- (1) The Secretary or the Director General (Forests) or any other officer as notified by the Secretary, in addition to the conferment of a certificate or medallion may make a payment of incentive or reward to any officer or official who has made an exceptional effort towards accomplishing the objective of the Act, in such manner as may be prescribed.

(2) Where any officer or official suffers any bodily injury while performing his official duty for the purposes of the Act, the compensation to him may be granted by the Director General (Forests) as may be prescribed.

51-N. Punishment for an officer or official.- (1) In case an officer or official has been found, directly or indirectly, involved in violation of any provision of the Act, he

shall be liable to be punished with maximum punishment and double of the maximum fine provided for the offence in the Act.

(2) The First Information Report under sub-section (1), shall be registered against an officer or official in the following manners:

- (a) if offender is in the rank of BS-14 or below, on the recommendations of concerned Assistant Conservator of Forests or Forest Protection Officer as the case may be and after approval of the Deputy Conservator of Forests;
- (b) if offender is in the rank of BS-15 to BS-16 on the recommendations of Deputy Conservator of Forests and after approval of the Director General (Forests); and
- (c) if offender is in BS-17 or above, on the recommendation of the Director General (Forests) and after approval of the Secretary.

(3) The Secretary on his own or on a report, may, after holding a preliminary inquiry and after having been satisfied, order for registration of First Information Report against any officer or official or any other person who has been found, directly or indirectly, involved in violation of any provision of the Act.

51.O. Whistle-blower disclosure.- (1) Any person making a whistle-blower disclosure shall make a personal declaration that the information disclosed and allegations contained therein are true to the best of his knowledge and belief, and are not disclosed for any personal reason.

(2) Every whistle-blower disclosure shall be made in writing or electronic form in such manner and accompanied by such documents or other material as may be prescribed.

(3) Upon receipt of whistle-blower disclosure, the Investigating Officer or any other authorized officer shall make an assessment of the information contained in the disclosure and verify the same under intimation to the next higher authority in such manner as may be prescribed.

(4) Upon assessment and verification under sub-section (3), if the Investigating Officer or officer is of the view that the whistle-blower disclosure warrants further probe, inquiry or investigation, he shall complete such probe immediately but not later than twenty-four hours and take necessary action, if so required.

51.P. Reward and punishment.- (1) If any violation or offence is determined by the Investigating Officer or any officer on whistle-blower's disclosure and offender is punished in consequence of such disclosure, such whistle-blower may be rewarded in addition to a certificate of appreciation, as may be prescribed:

Provided that in case of disclosures by more than one whistle-blower for the same violation or offence, reward shall equally be distributed amongst such whistle-blowers based on their respective contribution, as determined by the Director General (Forests).

(2) In case a whistle-blower discloses such information which is false, frivolous or vexatious and on such disclosure, Investigating Officer or Director General (Forests) or authorized officer, after making probe on it and by providing an

opportunity of hearing, the said whistle blower shall be liable to fine which may extend up to one hundred thousand rupees.

51.Q. Protection of whistle-blower.- (1) The identity of a whistle-blower, other than provided in sub-section (2) of section 51-O, shall not be disclosed even after conclusion of proceedings except with written consent of such whistle-blower and in case an unauthorized disclosure of identity of such whistle-blower has been made by an officer or official, it shall deemed to be a misconduct under the Punjab Employees Efficiency, Discipline and Accountability Act, 2006 (XII of 2006).

(2) The Director General (Forests) may, in consultation with whistle-blower, take necessary measure for his protection for such duration and in such manner as may be prescribed.]

CHAPTER IX Penalties and Procedure

²⁵⁷**[52. Sealing and seizure of the property liable to confiscate.-** (1) An officer or official not below the rank of BS-11 may seize any timber, forest produce, implements, tools, equipment, carts, carriages, wagons, pick-up, lorry, truck, boat or launch, van, motor car, bus, or any other mechanically propelled vehicles, saw machine, sawing unit, chain saw, power saw, pack animals, arms and ammunition or any moveable property or any other kind of conveyances used in the commission, abetment or furtherance of the offence under the Act, or rules made thereunder.

(2) Any officer not below the rank of an Assistant Conservator of Forests may search and seal any immoveable property, shop, store, godown, house, place or building or house or place or saw mill or charcoal kiln or firewood depot or such type of construction where any forest produce is illegally stored, concealed or kept or may be stored, concealed or kept without any authority or permission and may arrest the owner, staff, dwellers of that store, house, building or shop:

Provided that in case of search of a residential building, prior approval from the concerned area ²⁵⁸[Court] shall be obtained.

(3) Any person aggrieved by the order passed under sub-sections (1) and (2), may file a representation before the concerned Chief Conservator of Forests within seven days who after affording an opportunity of personal hearing or through video link, may by an order in writing;

(a) accept the representation and pass an order for de-sealing or releasing the sealed or seized property, subject to deposit of a security bond of specified value or without security bond; or

(b) reject the representation if found without merit or invalid.

(4) Any person or officer aggrieved by an order under sub-section (3), within seven days of the order, may file an appeal before the Director General (Forests) who, after hearing the parties in person or through video link, may;

²⁵⁷Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.12.

²⁵⁸Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

- (a) accept the appeal and set-aside the impugned order with such directions as may be deemed appropriate; or;
- (b) reject the appeal.

(5) In case, aggrieved person chooses to appear for personal hearing through video link, the video link shall be organized by the concerned Assistant Conservator of Forests in his office where the aggrieved person shall appear to join the video link.

(6) On his own motion or on an application, the Director General (Forests) or Secretary, as the case may be, may, within ninety days of the passing of an order, call for and examine the record of such order passed by an officer subordinate to him, for the purpose of satisfying himself as to the correctness, legality or propriety of such order and may pass directions for correctness, legality or propriety of such order.

(7) Every officer or official who seizes any timber, forest produce or any moveable property under this section shall place on such moveable property a mark indicating that the same has been so seized; or any officer who seals any immoveable property, shop, store, godown, house, place or building or house or place or saw mill or charcoal kiln or firewood depot shall, as soon as may be, but not later than twenty-four hours, make a report of such seal or seizure and shall forward to the concerned Conservator of Forest or the Court as the case may be:

Provided that when the timber or forest produce with respect to which such offence is believed to have been committed is the property of Government, or the offender is not known, it shall be sufficient if the officer or official makes, as soon as may be but not later than twenty-four hours, a report of the circumstances for the Deputy Conservator of Forests who shall confiscate it in favour of Government.

(8) The timber, forest produce or any moveable property seized under this section may be placed in the custody of the Forest Protection Center or possession of a custodian with the permission of concerned officer and shall not be removed, transferred, damaged, altered, or disposed of in any manner except with the prior permission of the Deputy Conservator of Forests or the Court as the case may be.

(9) When the offender is not known or cannot be found, the Deputy Chief Conservator of Forests or the Court, as the case may be, shall, if satisfied that an offence has been committed, may order that the case property seized under this section shall be confiscated in favour of Government:

Provided that no such order shall be made until the expiration of one month from the date of seizing such moveable property, or without hearing the person, if any, claiming any right thereto, and the evidence, if any, which he may produce in support of his claim.]

²⁵⁹**[53. Power to de-seal or de-seize property seized or sealed under section 52 and procedure thereupon.-** (1) Save as provided in section 52, no officer shall release a timber, forest produce, vehicle, cattle, boat, tool or any other article or moveable propriety seized under the Act.

²⁵⁹Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

(2) Upon the receipt of any report under the Act, the Court shall, with all convenient dispatch, take such measures as may be necessary for the arrest and trial of the offender and the disposal of the seized property according to law.

(3) Any person who forcibly, without proper authorization, de-seals, de-seizes, or interferes with any sealed immoveable property, or seized moveable property which has been legally sealed or seized under section 52, shall be punished with imprisonment for a term which may extend to seven years but not less than five years and with fine which shall not be less than one hundred thousand rupees and not more than one million rupees and such offence shall be cognizable and non-bailable.]

²⁶⁰[* * * * *]

55. Forest-produce, tools, etc., when liable to confiscation.— (1) All timber or forest-produce which is not the property of Government and in respect of which a forest-offence has been committed, and all tools, boats, ²⁶¹[vehicles] and cattle used in committing any forest-offence, shall be liable to confiscation.

(2) Such confiscation may be in addition to any other punishment prescribed for such offence.

56. Disposal on conclusion of trial for forest-offence, of produce in respect of which it was committed.— When the trial of any forest-offence is concluded, any forest-produce in respect of which such offence has been committed shall, if it is the property of Government or has been confiscated, be taken charge of by a Forest-officer, and, in any other case, may be disposed of in such manner as the Court may direct.

57. Procedure when offender not known, or cannot be found.— When the offender is not known or cannot be found the ²⁶²[Court] may, if he finds that an offence has been committed, order the property in respect of which the offence has been committed to be confiscated and taken charge of by the Forest-officer, or to be made over to the person whom the ²⁶³[Court] deems to be entitled to the same:

Provided that no such order shall be made until the expiration of one month from the date of seizing such property, or without hearing the person, if any, claiming any right thereto, and the evidence, if any, which he may produce in support of his claim.

58. Procedure as to perishable property seized under section 52.— The ²⁶⁴[area ²⁶⁵[Court] or Court] may, notwithstanding anything hereinbefore contained,

²⁶⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.26.

²⁶¹Substituted for the word "carts" by the Indian Forest (West Pakistan Amendment) Act, 1948 (IV of 1948), published in the West Punjab Gazette (Extraordinary), dated February 21, 1948, p. 93, s. 2.

²⁶²Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

²⁶³Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

²⁶⁴Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.14.

direct the sale of any property seized under section 52 and subject to speedy and natural decay, and may deal with the proceeds as he would have dealt with such property if it had not been sold.

59. Appeal from orders under section 55, section 56, or section 57.— The officer who made the seizure under section 52, or any of his official superiors, or any person claiming to be interested in the property so seized, may, within one month from the date of any order passed under section 55, section 56 or section 57, appeal therefrom to the Court to which orders made by such ²⁶⁶[Court] are ordinarily appealable, and the order passed on such appeal shall be final.

60. Property when to vest in Government.— When an order for the confiscation of any property has been passed under section 55 or section 57, as the case may be, and the period limited by section 59 for an appeal from such order has elapsed, and no such appeal has been preferred, or when, on such an appeal being preferred, the Appellate Court confirms such order in respect of the whole or a portion of such property, such property or such portion thereof, as the case may be, shall vest in the Government free from all encumbrances.

²⁶⁷**[61. Power to release a seized property.**— Notwithstanding anything contained in this Chapter, an officer, authorized in this behalf by the Government, may direct immediate release of any property, which is wrongfully seized under this Act, not being the property of the Government.]

62. Punishment for wrongful seizure.— Any Forest-officer or ²⁶⁸[**] who vexatiously and unnecessarily seizes any property on pretence of seizing property liable to confiscation under this Act shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

²⁶⁹**[63. Penalty for counterfeiting or defacing marks on trees and timber and for altering boundary marks.**— (1) If a person, with intent to cause damage or injury to the public or to any other person, or to cause wrongful gain—

- (a) knowingly counterfeits upon any timber or standing tree a mark used by a forest officer to indicate that the timber or tree is the property of the Government or of some person, or that it may lawfully be cut or removed by some person; or
- (b) alters, defaces or obliterates any such mark placed on a tree or timber by or under the authority of a forest officer; or

²⁶⁵Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

²⁶⁶Substituted for the word "magistrate" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.18.

²⁶⁷Substituted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 19.

²⁶⁸Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.15.

²⁶⁹*Ibid.*, s. 20.

- (c) alters, moves, destroys or defaces any boundary-mark of a forest or wasteland to which the provisions of this Act are applied;

the person shall be liable to imprisonment for a term which may extend to two years or fine which may extend to one million rupees or to both.

(2) If the offence under this section is committed after sunset and before sunrise or the accused is a previous convict for a forest offence, the accused person shall be liable to double of the penalty prescribed under sub-section (1).]

²⁷⁰[* * * * *]

²⁷¹[* * * * *
*]

²⁷²**[65. Release of accused when evidence deficient.-** (1) If, upon an investigation under the Act, it appears to the officer incharge of the Forest Protection Center, or to the officer making the investigation that there is no sufficient evidence or reasonable ground or suspicion to justify forwarding of the accused to a Court, such officer may, if such person is in custody, release him on his executing a bond, with or without sureties, as such officer may direct, to appear, if and when so required, before the Court empowered to take cognizance of the offence on a report and to try the accused.

(2) Where Investigating Officer finds no sufficient grounds to proceed with an investigation, he shall not continue the investigation and in such cases, the officer in charge of the Forest Protection Center shall record in his report a detailed statement of the reasons for closing the investigation and shall immediately intimate the Director General (Forests) of such decision and the circumstances thereof, in such manner as may be prescribed.

(3) The Secretary shall have the authority to withdraw any case from the Court at any stage.]

66. Power to prevent commission of offence.– Every Forest-officer and Police-officer shall prevent, and may interfere for the purpose of preventing, the commission of any forest-offence.

²⁷³[* * * * *]

68. Power to compound offences.–²⁷⁴[(1) The Government may, by notification, confer power on a forest officer–

- (a) to accept from a person against whom a reasonable suspicious exists that he has committed any forest offence, other than an offence

²⁷⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.26.

²⁷¹Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.26.

²⁷²Substituted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3298, s.16.

²⁷³Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.26.

²⁷⁴*Ibid.*, s. 25(a).

specified in ²⁷⁵[section 51-Q, section 53 and section 79-A], section 62 or section 63, a sum of money which is not less than the value of loss to the property of the Government, as compensation for the offence; and

- (b) when any property has been seized, not being the property of the Government, to release the property on payment or without payment of compensation, as may be prescribed.]

²⁷⁶[(c) if any person commits the same offence again, the compensation payable by the offender shall be double equated to the amount previously recovered from him;

- (d) if the same person commits the same offence for the third time, no compensation shall be received from him and a case shall be registered against him under the Act and such offence shall be treated as cognizable and non-bailable; and

- (e) such offences provided in sub-clause (d) shall be punished with imprisonment which may extend to five years but not less than three years and with fine which shall not be less than one hundred thousand rupees and not more than one million rupees, along with confiscation of the weapon, article, forest produce, vehicles, equipment, machinery, cart, boat, cattle or any other article or animal used in commission of offence in addition to the damage provided under sub-section (3) of section 26 and in case of non-payment of fine, shall undergo six months imprisonment.]

(2) On the payment of such sum of money, or such value, or both, as the case may be, to such officer, the suspected person, if in custody, shall be discharged, the property, if any, seized shall be released, and no further proceedings shall be taken against such person or property.

²⁷⁷[* * * * *]

²⁷⁸**[68-A. Reward in forest cases.–** The Government may, by notification and in the prescribed manner, allow a forest officer to reward a subordinate forest officer from the compensation recovered by the forest officer under section 68 which amount shall not be more than three fourth of the amount of compensation recovered from the person.]

69. Presumption that forest-produce belongs to Government.– When in any proceedings taken under this Act, or in consequence of anything done under this Act, a question arises as to whether any forest-produce is the property of the Government, such produce shall be presumed to be the property of the Government until the contrary is proved.

²⁷⁵Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.17(a).

²⁷⁶Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.17(b).

²⁷⁷Omitted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 25(b).

²⁷⁸Inserted *ibid.*, s. 26.

CHAPTER X Cattle-trespass

70. Cattle-trespass Act, 1871, to apply.— Cattle trespassing in a reserved forest or in any portion of a protected forest which has been lawfully closed to grazing shall be deemed to be cattle doing damage to a public plantation within the meaning of section 11 of the Cattle-trespass Act, 1871²⁷⁹, and may be seized and impounded as such by any Forest-officer or ²⁸⁰[***].

²⁸¹[**71. Powers to alter fines.**— The Government may, by notification, direct that in lieu of the fines fixed under section 12 of the Cattle-Trespass Act 1871 (I of 1871), the owner or occupant of the cattle, impounded under section 70, shall pay the fines, as the Government deems appropriate but such fines shall not exceed the following amounts:-

for each buffalo or camel one thousand rupees

for each horse, mare,
gelding, pony, colt, filly, five hundred rupees
mule, bull, bullock, cow or
heifer

for each calf, ass, ram, ewe, two hundred rupees.]
sheep, lamb or goat

CHAPTER XI Of forest-officers

72. ²⁸²⁻²⁸³[**Government**]] may invest Forest-officers with certain powers.— (1)
The ²⁸⁴⁻²⁸⁵[**Government**]] may invest any Forest-officer with all or any of the following powers, that is to say:—

- (a) power to enter upon any land and to survey, demarcate and make a map of the same;
- (b) the powers of a Civil Court to compel the attendance of witnesses and the production of documents and material objects;

²⁷⁹I of 1871.

²⁸⁰Omitted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.19.

²⁸¹Omitted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 27.

²⁸²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁸³Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁸⁴Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁸⁵Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

- (c) power to issue a search-warrant under the Code of Criminal Procedure, 1898²⁸⁶; and
- (d) power to hold an inquiry into forest-offences, and, in the course of such inquiry, to receive and record evidence.

(2) Any evidence recorded under clause (d) of sub-section (1) shall be admissible in any subsequent trial before a Magistrate, provided that it has been taken in the presence of the accused person.

²⁸⁷[(3) The Chief Conservator of Forests, Conservator of Forests, Deputy Conservator of Forests, Assistant Conservator of Forests, Forest Protection Officer, or any other officer designated by the Secretary, shall be the forest officers under the Act.]

²⁸⁸**[73. Public servants.-** All officers and officials in the performance of duties under the Act shall be deemed to be public servants within the meaning of the provisions of the Pakistan Penal Code, 1860 (XLV of 1860).]

²⁸⁹**[74. Indemnity.-** No suit or prosecution shall lie against an officer or official for any act done in good faith or ordered to be done in pursuance of any provision of the Act.]

75. Forest-officers not to trade.— Except with the permission in writing of the ²⁹⁰⁻²⁹¹[Government]], no Forest-officer shall, as principal or agent, trade in timber or other forest-produce, or be or become interested in any lease of any forest or in any contract for working any forest, whether in or outside ²⁹²⁻²⁹³[Pakistan]].

CHAPTER XII Subsidiary rules

76. Additional powers to make rules.— The ²⁹⁴⁻²⁹⁵[Government]] may make rules—

²⁸⁶V of 1898.

²⁸⁷Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.20.

²⁸⁸Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.21.

²⁸⁹Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.22.

²⁹⁰Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁹¹Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁹²Substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, Articles 3(2) and 4.

²⁹³Substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Second Schedule.

²⁹⁴Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁹⁵Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

- (a) to prescribe and limit the powers and duties of any Forest-officer under this Act;
- (b) to regulate the rewards to be paid to officers and informers out of the proceeds of fines and confiscation under this Act;
- (c) for the preservation, reproduction and disposal of trees and timber belonging to Government, but grown on lands belonging to or in the occupation of private persons; and
- (d) generally, to carry out the provisions of this Act.

²⁹⁶[77. **Penalty for breach of rules.**— If a person contravenes any rule made under this Act and for which no penalty is provided under the Act, the person shall be liable to imprisonment for a term which may extend to six months or fine which may extend to ten thousand rupees or to both.]

78. Rules when to have force of law.— All rules made by the ²⁹⁷⁻²⁹⁸[Government]] under this Act shall be published in the ²⁹⁹[Official Gazette], and shall thereupon, so far as they are consistent with this Act, have effect as if enacted therein.

³⁰⁰[CHAPTER XII-A Forest Company]

78-A. Forest company.— (1) The Government may establish a forest company under the Companies Ordinance, 1984 (XLVII of 1984) to oversee the implementation of public private partnership on assigned forest land or wasteland.

(2) The Government may, by notification in the official Gazette, assign a blank forest land or wasteland owned by the Government to a forest company.

(3) The Government shall not notify a forest land or wasteland under subsection (2) unless the nature and extent of the rights of the Government and of private persons in or over the forest land or wasteland have been inquired into and recorded at a survey or settlement or in such other manner as the Government deems appropriate.

(4) Subject to the Companies Ordinance, 1984 (XLVII of 1984), the Government may constitute the Board of Directors of a forest company with equal representation from public and private sectors to manage functioning of the forest company.

(5) The forest company shall, in addition to its Articles of Association and Memorandum of Association, comply with the provisions of this Act and the rules.

²⁹⁶Substituted *ibid.*, s. 28.

²⁹⁷Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²⁹⁸Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

²⁹⁹Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³⁰⁰Inserted by the Punjab Forest (Amendment) Act 2016 (XIV of 2016), published in the Punjab Gazette (Extraordinary), dated February 29, 2016, pp. 4045-4047, s. 3.

78-B. Procedure for partnership.— (1) The forest company shall invite applications of eligible persons through a public notice, published in at least two national daily newspapers, for public private partnership for the development of forest on the forest land or wasteland.

(2) The eligibility criteria for an applicant shall include:

- (a) availability of required technical and other human resource to undertake the project;
- (b) financial capacity; and
- (c) relevant experience.

(3) The forest company shall execute the afforestation plan in accordance with the Agreement signed with the successful applicant that shall not exceed fifteen years but it may contain provision for extension of the Agreement for one more term of fifteen years subject to satisfactory performance by the applicant.

(4) The forest company and the person occupying a forest land or wasteland under public private partnership shall protect:

- (a) the forest land or wasteland from any type of encroachment or use other than the permitted or permissible use under the Agreement, this Act or the rules; and
- (b) the forest produce from illegal removal, illegal cultivation or other incidents such as forest fire, insect attack and diseases.

(5) The forest company shall deposit the profit with the Government.

(6) The forest company shall maintain record of forest produce and shall annually submit the record of the forest produce to the Government.

(7) The Government may notify a monitoring committee to monitor and evaluate the afforestation plan of the forest company.

(8) The forest company and the occupant shall rectify any violations to the afforestation plan specified by the monitoring committee within sixty days.

(9) The Government may conduct third party validation to evaluate performance of the forest company or any public private partnership project under the Act.]

CHAPTER XIII Miscellaneous

79. Persons bound to assist Forest-officers and Police-officers.— (1) Every person who exercises any right in a ³⁰¹[reserved, protected or unclassed forests], or who is permitted to take any forest-produce from, or to cut and remove timber or to pasture cattle in such forest, and every person who is employed by any such person in such forest, and every person in any village contiguous to such forest who is employed by the ³⁰²⁻³⁰³[Government]], or who receives emoluments from the

³⁰¹Substituted for the words “reserved or protected forest” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 29(a).

³⁰²Substituted for the word “Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

³⁰⁴³⁰⁵[Government]] for services to be performed to the community, shall be bound to furnish without unnecessary delay to the nearest Forest-officer or ³⁰⁶[**] any information he may possess respecting the commission of, or intention to commit, any forest-offence, and shall forthwith take steps, whether, so required by any Forest-officer or Police-officer or not,—

- (a) to extinguish any forest fire in such forest of which he has knowledge or information;
- (b) to prevent by any lawful means in his power any fire in the vicinity of such forest of which he has knowledge or information from spreading to such forest,

and shall assist any Forest-officer or Police-officer demanding his aid—

- (c) in preventing the commission in such forest of any forest-offence; and
- (d) when there is reason to believe that any such offence has been committed in such forest, in discovering and arresting the offender.

(2) Any person who, being bound so to do, without lawful excuse (the burden of proving which shall lie upon such person) fails—

- (a) to furnish without unnecessary delay to the nearest Forest-officer or Police-officer any information required by sub-section (1);
- (b) to take steps as required by sub-section (1) to extinguish any forest fire in a reserved or protected forest;
- (c) to prevent, as required by sub-section (1), any fire in the vicinity of such forest from spreading to such forest; or
- (d) to assist any Forest-officer or Police-officer demanding his aid in preventing the commission in such forest of any forest-offence, or when there is reason to believe that any such offence has been committed in such forest in discovering and arresting the offender; shall be punishable with imprisonment for a term ³⁰⁷[which may extend to ³⁰⁸[one year] or with fine which may extend to ³⁰⁹[one hundred] thousand rupees or with both].

³⁰³Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

³⁰⁴Substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

³⁰⁵Substituted for the word "Crown" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

³⁰⁶Omitted for the word "Police-officer" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.23.

³⁰⁷Substituted for the words "which may extend to one month, or with fine which may extend to two hundred rupees or with both" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 29(b).

³⁰⁸Substituted for the words "three months" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.23.

³⁰⁹Substituted for the words "twenty-five" by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.23.

³¹⁰**79-A. Organized forest offence and punishment.-** (1) Any of the following acts, by any person or organized group or network, shall count as organized forest offence and shall be cognizable, non-bailable and non-compoundable:

- (a) illegal cutting, felling, logging, trade, trafficking or smuggling of forest produce;
- (b) encroachment or grabbing of forest land or attempt or planning for encroachment or grabbing of the forest land;
- (c) illegal change of the forest land or intentional setting of fire or igniting flames within the forest;
- (d) use of force or unlawful force or attack or attempt to use force or unlawful force or attack against any officer or official to prevent him from performing his official duties;
- (e) snatch or attempt to snatch any official weapon, vehicle, uniform or other instruments or official belongings or restrain or attempt to snatch any official weapon, vehicle, uniform or official belongings or other instruments from the officer or official or restrain or attempt to restrain any officer or official while performing his official duties; and
- (f) destroy, damage, attack or attempt to destroy, attack or damage to forest, forest produce, boundary pillars, Forest Protection Centers or check posts or towers, or other signs or indicators installed or established by the Department and burgle, damage, or unlawfully interfere with any equipment, machinery, gadgets, or instruments installed or used by the Department.

(2) If any person, involved in any of the organized offence and crime provided in sub-section (1), shall be punished with imprisonment which may extend to ten years but not less than eight years and with fine which shall not be less than one million rupees but not more than ten million rupees, along with confiscation of the weapon, article, forest produce, vehicle, equipment, machinery, cart, boat, cattle or any other article or animal used in commission of offence in addition to the damage provided under sub-section (3) of section 26 and in case of non-payment of fine, shall undergo one year imprisonment.]

80. Management of forests the joint property of Government and other persons.- (1) If the Government and any person be jointly interested in any forest or waste-land, or in the whole or any part of the produce thereof, the ³¹¹³¹²[Government]] may either—

- (a) undertake the management of such forest, waste-land or produce, accounting to such person for his interest in the same; or

³¹⁰Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.24.

³¹¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³¹²Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

- (b) issue such regulations for the management of the forest, waste-land or produce by the person so jointly interested as it deems necessary for the management thereof and the interests of all parties therein.

(2) When the ³¹³⁻³¹⁴[Government]] undertakes under clause (a) of sub-section (1) the management of any forest, waste-land or produce, it may, by notification in the ³¹⁵[Official Gazette], declare that any of the provisions contained in Chapters II and IV shall apply to such forest, waste-land or produce, and thereupon such provisions shall apply accordingly.

³¹⁶⁻³¹⁷[**80-A. Public private partnership.**– (1) Subject to the Punjab Public Private Partnership Act 2014 (IX of 2014) and any other law for the time being in force, the Government may itself or through a forest company invite proposals for the development of a forest land or wasteland.

(2) The Government may itself or through a forest company enter into public private partnership for the development, preservation and conservation of a forest land or wasteland.

(3) Subject to the provisions of this Act, the Government may itself or through a forest company permit any person to use a blank forest land or wasteland for increase in the productivity of the forest.

(4) The Government shall not permit use of forest land or wasteland assigned to a forest company for:

- (a) construction of any permanent structure; or
- (b) change of land use for the purpose other than the development of forest or forest related activities.

(5) Subject to the Punjab Public Private Partnership Act 2014 (IX of 2014) and any other law for the time being in force, the Government or forest company shall enter into a detailed contractual arrangement with any person in accordance with the provision of this section.

(6) If, in the opinion of the Government or forest company, the person has violated any provision of the Act or the contractual arrangement, the Government may, in addition to any other penalty prescribed under the Act, recover possession of the forest land or wasteland from the occupant.

(7) Nothing in this section shall be construed to allow the Government or forest company or any other occupant of the forestland or wasteland to permit or to do an act, which is prohibited or punishable under the Act.]]

³¹³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³¹⁴Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³¹⁵Substituted for the words "local official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³¹⁶Inserted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 30.

³¹⁷Substituted by the Punjab Forest (Amendment) Act 2016 (XIV of 2016), published in the Punjab Gazette (Extraordinary), dated February 29, 2016, pp. 4045-4047, s. 4.

³¹⁸**[80-B. Protection of vulnerable, endangered and threatened native flora.-** (1) The Department shall by notification in the official Gazette declare any specie of native flora or any specific tree as a protected species, if it is classified as vulnerable, endangered or threatened based on scientific assessment or ecological survey or historical or cultural importance or international conservation standers and such notification shall include:

- (a) the scientific and common name of the specie;
- (b) the geographic range and habitats where the species is protected;
- (c) specific conservation measures and restrictions applicable to the species; and
- (d) any other information or condition.

(2) In case protected species falls within a private land, the Department shall facilitate the landowner in preserving and protecting such flora by providing alternative species, offering compensation at market value, or extending necessary physical assistance as notified by the Department under sub-section (1).

(3) Unless expressly authorized by the Secretary, no person shall cut, uproot, damage , trade, transport, harvest or destroy any part of the protected species or its habitat and if any person contravenes the provision of this section shall be punished with imprisonment which may extend to one year but not less than six months and with fine which shall not be less than one hundred thousand rupees but not more than one million rupees, along with confiscation of the weapon, article, forest produce, tree, wood, vehicles, equipment, machinery, cart, boat, cattle or any other article or animal used in commission of offence in addition to the damage provided under sub-section (3) of section 26 and in case of non-payment of fine, shall undergo six months imprisonment and in case of a repeat offence, the penalty shall be double and subsequent penalties may further be enhanced accordingly.

(4) The Department may periodically review and revise the list of protected species and un-list protected species on the recommendations of the Director General (Forests).]

81. Failure to perform service for which a share in produce of Government forest is enjoyed.– If any person be entitled to a share in the produce of any forest which is the property of Government or over which the Government has proprietary rights or to any part of the forest-produce of which the Government is entitled, upon the condition of duly performing any service connected with such forest, such share shall be liable to confiscation in the event of the fact being established to the satisfaction of the ³¹⁹⁻³²⁰ [Government]] that such service is no longer so performed:

Provided that no such share shall be confiscated until the person entitled thereto, and the evidence, if any, which he may produce in proof of the due

³¹⁸Inserted by the Forest (Amendment) Act 2025 (CV of 2025), published in the Punjab Gazette (Extraordinary), dated: December 18, 2025, pp. 3283-3300, s.25.

³¹⁹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³²⁰Substituted for the words “Provincial Government” by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

performance of such service, have been heard by an officer duly appointed in that behalf by the ³²¹⁻³²²[Government]].

82. Recovery of money due to Government.— All money payable to the Government under this Act, or under any rule made under this Act, or on account of the price of any forest-produce, or of expenses incurred in the execution of this Act in respect of such produce, may, if not paid when due, be recovered under the law for the time being in force as if it were an arrear of land-revenue.

83. Lien on forest-produce for such money.— (1) When any such money is payable for or in respect of any forest-produce, the amount thereof shall be deemed to be a first charge on such produce, and such produce may be taken possession of by a Forest-officer until such amount has been paid.

(2) If such amount is not paid when due, the Forest-officer may sell such produce by public auction, and the proceeds of the sale shall be applied first in discharging such amount.

(3) The surplus, if any, if not claimed within two months from the date of the sale by the person entitled thereto, shall be forfeited to ³²³[Government].

84. Land required under this Act to be deemed to be needed for a public purpose under the Land Acquisition Act, 1894.— Whenever it appears to the ³²⁴⁻³²⁵[Government]] that any land is required for any of the purposes of this Act, such land shall be deemed to be needed for a public purpose within the meaning of section 4 of the Land Acquisition Act, 1894³²⁶.

85. Recovery of penalties due under bond.— When any person, in accordance with any provision of this Act, or in compliance with any rule made thereunder, binds himself by any bond or instrument to perform any duty or act, or covenants by any bond or instrument that he, or that he and his servants and agents will abstain from any act, the whole sum mentioned in such bond or instrument as the amount to be paid in case of a breach of the conditions thereof may, notwithstanding anything in section 74 of the Indian Contract Act, 1872³²⁷, be recovered from him in case of such breach as if it were an arrear of land-revenue.

³²¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³²²Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³²³Substituted for the words "His Majesty" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(2) read with Table.

³²⁴Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³²⁵Substituted for the words "Provincial Government" by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 3.

³²⁶I of 1894.

³²⁷IX of 1872.

³²⁸³²⁹ [³²⁸ 85A. * * * * *]]

86. Repeals.— The enactments mentioned in the Schedule are hereby repealed to the extent specified in the fourth column thereof.

³³⁰ [* * *]

³²⁸Inserted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

³²⁹Omitted by the Forest (Amendment) Act 2010 (XVII of 2010), published in the Punjab Gazette (Extraordinary), dated October 21, 2010, pp. 1105-1114, s. 31.

³³⁰Repealed "**THE SCHEDULE**" by the Central Laws (Adaptation) Order, 1961 (I of 1961), vide Notification No. F.13(1)59-D&L, published in the Gazette of Pakistan (Extraordinary), dated January 24, 1961, pp. 102-174, Article 2(3) read with Schedule.